

MASTER SUBSCRIPTION AND SERVICES AGREEMENT

This Master Subscription and Services Agreement (the "Agreement") is made as of June 27, 2025 (the "Effective Date") by and between the Moody's entity identified below ("Moody's"), and the Client entity identified below ("Client"). Moody's and Client are each referred to as a "Party" and collectively as the "Parties".

Client Entity:	SCOR GIE Informatique, acting in its own name and on its own behalf and in the name and on behalf of its members, SCOR SE and its Affiliates
Client Address:	5 Avenue Kléber Paris, 75795
Moody's Entity:	Moody's Analytics UK Limited ("Moody's"), an English company having its registered office at One Canada Square, Canary Wharf, London E14 5FA, United Kingdom

1. DEFINITIONS

"Affiliate" means any legal entity of a party which either Controls, is under the Control of, or is under common Control with such Party.

"Authorized Users" means any individuals who are authorized by Client to access and use the Products and Support Services in compliance with this Agreement, and to whom Client (or Moody's on Client's request) has supplied user credentials or access rights to the Products and Support Services. Authorized Users include employees, consultants, contractors, outsourcers and agents of Client and/or authorized Client Affiliates, subject to the limitations set out in this Agreement and/or in an Order Form.

"Business Data" means electronic information submitted by Authorized Users to or through the Products for storage or processing.

"Confidential Information" means all information disclosed by a party ("Disclosing Party") to the other party ("Receiving Party"), whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. Without limiting the generality of the foregoing, (a) Client's Confidential Information shall include its Business Data; and (b) Moody's Confidential Information shall include the Products and Services (including any models software, data and databases, algorithms, know-how, formulas, processes, ideas, inventions, schematics and other technical information provided through or in connection with the Products and Services). The terms and conditions of this Agreement are confidential to both Parties.

"Control" means (a) the direct or indirect ownership by a person or entity of at least fifty (50) percent of the stock or other securities or interests entitled to vote for the election of the board of directors or other governing body of another entity, or (b) the direct or indirect ownership by a person or entity of at least fifty (50) percent of the equity or profits interest in another entity; or (c) a person's right or ability, whether directly or indirectly, to dictate the decisions, actions, and/or policies of an entity or its management.

"Deliverable(s)" means any reports, models, documents, data, software or other materials that are developed by Moody's for and/or provided to the Client pursuant to the provision of Professional Services.

"Derivative Works" means derivative works (as that term is defined in the US Copyright Act (17 U.S.C. § 101 et seq.) derived from or based on Moody's Products or Documentation, provided that the Parties acknowledge any final determination whether copyright is infringed shall be determined under the governing law of the Agreement.

"Documentation" for a Product means (a) if available, the latest versions of the documents that are titled "User Guide" for the applicable Product that can be accessed by Client at Moody's Client Portal or from within the relevant Product; and (b) the Moody's-provided help screens accessed within the Products and any printed or electronic user manuals provided by Moody's to Client in connection with the Products (including but not limited to Intelligent Risk Platform application package details). Documentation does not include training or course materials licensed or sold separately or documentation delivered by Moody's professional services team in the course of an implementation project or other professional services provided under a separate agreement.

"DORA Regulation" means the Digital Operational Resilience Act Regulation EU 2022/2554.

"Initial Term" has the meaning set forth in the "Term" section below.

"Licensors" means Moody's third party data suppliers and licensors.

"MIS" means, collectively, Moody's Investors Service, Inc. and any affiliated company under common Control that is engaged in credit rating activities and that is part of the Moody's Ratings business division of Moody's Corporation.

"Models" means Moody's proprietary natural hazard catastrophe models, in object code form only and incorporated into the Products, as set forth in each applicable Order Form.

"Order Form" means an ordering document executed by Moody's (or a Moody's Affiliate) and the Client (or a Client Affiliate) that references or incorporates by reference this Agreement and sets forth the Products, Support Services and/or Professional Services to be provided to the Client, the fees payable therefor, and any other terms and conditions relating to such order (including any other exhibits, schedules and addenda, referenced in the Order Form).

"Products" means the particular Moody's web services, information services, software-as-a-service, databases, profiles and underlying data included into Models, data feeds and other products and services, if any, to be provided to Client by Moody's and identified in the Order Form, including any data, models, and other information provided therewith.

"Professional Services" means implementation, training, onboarding or other related work performed by Moody's for Client under the Order Form.

"Renewal Term" has the meaning set forth in the Term section below.

"Services" means the Support Services and the Professional Services.

"Support Services" means the support services that may be provided by Moody's in relation to a Product, as set out in the relevant Support Services schedule referenced in the Order Form, as applicable.

"Third Party Data" means any data obtained by Moody's from Licensors and delivered through the Products.

"Usage Parameter" means any restriction or limitation imposed by Moody's on Client's use of a Product or Service, including any restrictions or other limitations set forth in the Order Form and in this Agreement. A Usage Parameter may consist of the total assets of Client, use by Client Affiliates, the size of a relevant loan portfolio, assets under management, number of users, business unit or division, business location / premises, or any other applicable use limitation and/or measurement specified in the Order Form.

2. PROVISION OF PRODUCTS AND SERVICES

2.1 Non-Exclusivity. Moody's acknowledges that it is not being appointed as an exclusive supplier, and Client may (i) use similar products and/or services developed by Client in compliance with this Agreement, or (ii) contract with other service providers to obtain similar products and/or services. Nothing in this Agreement shall be construed as a requirement to enter into any further contract, and Client make no commitment on the conclusion of any specific Order Form, or as to the likely or actual volumes or levels of use of Products and Services. Any order or request for Products or Services must be subject to a specific Order Form under this Agreement.

2.2 Products and Support Services. Moody's shall for the duration of the subscription term set forth in the Order Form: (a) make the Products available to Client subject to this Agreement; (b) provide the applicable Support Services for the Products; and (c) provide the Products in accordance with laws and regulations applicable to Moody's and its provision of its Products to its customers generally, and subject to Client's Authorized Users' use of the Products in accordance with this Agreement and the Documentation. Moody's shall provide remote access to the Products subscribed by Client from a hosting environment operated by Moody's and/or its third party providers. Moody's shall assist Client's IT department in enabling access to the Products. This assistance is limited to providing login credentials for internet-based products and, where applicable for hosted instances of a Product, the technical details (IP addresses, ports, etc.) that are required to configure Client's network infrastructure to allow remote access.

2.3 Description and Location. Moody's shall in each Order Form (a) set forth a clear and complete description of Products and Services ordered; and (b) state the location, namely the regions or countries, from which Products are made available and/or Services are provided.

2.4 Service Levels. Service levels are specified in the relevant Order Forms, and Moody's shall provide Products and Services according to those service levels. Moody's will monitor its performance against service levels and maintain adequate technical and organizational procedures to do so. In the event Moody's fails to meet any service level, Moody's will take the corrective action and provide remedies as specified in the relevant Order Form.

2.5 Hosting and Support. Moody's shall provide remote access to the Products subscribed by Client from a hosting environment operated by Moody's and/or its third party provider. The security standards set forth in Schedule 2 apply to the hosting environment, including business continuity and disaster recovery measures. Moody's may make available via the Products an 'availability dashboard' or similar functionality to enable Client's monitoring of performance.

2.6 Notifications. Moody's shall provide timely notification to Client of any circumstances or events that may materially impact Moody's ability to provide the Products and Services according to agreed standards of performance, including relevant legal or regulatory developments that may affect pricing, terms or conditions.

2.7 Cooperation. Moody's will use its reasonable commercial efforts to appropriately cooperate with Client in the delivery and receipt of Products and Services, and promptly provide relevant information to Client as required for either Party to meet its obligations under this Agreement. Moody's in addition will fully cooperate with competent authorities and resolution authorities having jurisdiction over Client.

2.8 System Requirements. At Client's request, Moody's will provide information on any system requirements for the Products, and reasonably assist Client in interpreting those system requirements based on Client's technology environment.

2.9 Professional Services. Moody's will provide to Client any Professional Services specified in the Order Form, subject to the terms and conditions of this Agreement, the Order Form, and the Professional Services Schedule attached to this Agreement as Schedule 1.

2.10 Discontinuation. In the event Moody's elects to cease commercially offering a Product to customers generally, Moody's may offer Client a replacement Product with equivalent features and functions, at fees not exceeding the then-current fees for the Product being replaced. If Client does not wish to proceed with a replacement or if Moody's does not offer a replacement Product with equivalent features and functions at fees not exceeding the then-current fees for the Product being replaced, Client may cease use of the affected Product and shall be entitled to a proportionate refund of any unused Fees prepaid to Moody's for the affected Product.

3. USE OF PRODUCTS AND SERVICES

3.1 Product Subscriptions. Subject to the terms of this Agreement, Client shall have the right to access and use the Products and related Support Services (including access to the Documentation for the relevant Products) as specified in the Order Form for the duration of the applicable subscription term.

3.2 Documentation. Moody's shall supply Documentation for the Products written in Client's language where available, and in any event in English. The Documentation shall accurately describe the functions and features of the Products, and provide appropriate instruction to Authorized Users to facilitate their use of the Products. Client may copy the Documentation as required for Client's authorized use of the Products and share the Documentation with any Authorized Users or to any other person as permitted by Section 10 (*Confidentiality*). Moody's shall maintain and update the Documentation and promptly make any updated versions available to Client.

3.3 Usage Parameter. Client's right to access and use the Products is subject to any Usage Parameters set forth in the Order Form. Such Usage Parameter may also extend use to such of those Client Affiliates as are specified in an Order Form, or for whose benefit the Client may use, the Products licensed under such Order Form, and who thereupon shall be considered within the definition of "Client" for all relevant purposes of this Agreement. Notwithstanding anything in this Agreement to the contrary, Client shall have no right to access or use any Product in excess of the applicable Usage Parameters. If Client exceeds a Usage Parameter for a particular Product, and without prejudice to any other right or remedy it may have, Moody's shall have the right to charge Client additional fees in connection with such Product based on its standard list price. Upon Moody's request, Client shall provide a written certification from a duly authorized corporate officer of Client in a form reasonably acceptable to Moody's that Client's usage of the Product has not exceeded the Usage Parameter.

3.4 Restrictions on Access and Use. Client may access and use the Products and Documentation solely for its internal business purposes during the term of this Agreement. Client will not (a) use the Products on behalf of or for the benefit of any person or entity other than Client except as expressly stated otherwise in this Agreement and any Usage Parameter in an Order Form; (b) make the Products or Documentation or any output of the Products available to, or allow use by, any person or entity other than Client except as expressly stated otherwise in this Agreement; (c) license, sublicense, sell, resell, transfer, assign, distribute, rent or lease the Products or Documentation, or include any Products in a service bureau offering or otherwise use the Products to provide services to or for a third party; (d) interfere with or disrupt the integrity or performance of the Products; (e) attempt to gain unauthorized access to the Products or their related systems or networks; (f) use the Products to knowingly store or transmit any malicious code or any material that is infringing, libelous, unlawful or otherwise injurious or that would violate a person's privacy rights; (g) except as expressly permitted in this Agreement, use the Products in any manner for training or development of artificial intelligence technologies or tools or machine learning language models; (h) use the Products in connection with artificial intelligence technologies or tools or machine learning language models to generate any data or content and/or to synthesize or combine the Products or any portion thereof with any other data or content for use or distribution to any person or entity other than Client or as expressly stated in this Agreement; (i) scan or otherwise test the Products or any other technology assets owned by Moody's for vulnerability or penetration (however Moody's will provide independent third party penetration testing results on request); (j) utilize or seek to utilize any means to circumvent login, password, and other protections put in place to restrict access to certain parts of the Products; (k) remove or obscure any copyright, trademark, or other proprietary notices contained in the Products; (l) modify or create derivative works of a Product or Documentation or any part, feature, function or user interface thereof (for the avoidance of doubt, this shall not prevent Client from creating Blended Results as defined in an Order Form), (m) except to the extent permitted by applicable law, disassemble, reverse engineer, or decompile a Product, or access or use the Products or Documentation to (i) build or support a competitive product or service, or (ii) copy any ideas, features, functions or graphics of the Products; or (o) encourage, aid or permit others to do any of the foregoing.

3.5 Client Service Providers. Client may permit its third party consultants, service providers and agents to access and use the Products as Authorized Users, provided that: (a) such access and use is solely for the benefit of Client and within the scope of Client's permitted usage, including any Usage Parameter; and (b) no such third party may be granted access as an Authorized User if such third party is a competitor of Moody's or its Affiliates, as determined by Moody's in its reasonable discretion. Upon written request by Moody's, Client will provide Moody's with a written list of any third parties accessing the Products on its behalf, and the nature of such third party access and use.

3.6 Client Responsibilities. Client shall be solely responsible for all activity occurring under its accounts and shall abide by all applicable law and regulation in connection with its use of the Products, including those related to privacy, international communications, and the transmission of technical or personal data. Client shall cause its Authorized Users to comply with all terms and conditions of this Agreement as if they were a direct party thereto. Client shall be responsible and liable for the acts and omissions of each Authorized User, and any such act or omission will be deemed a breach of this Agreement to the extent that it would constitute such a breach if made by Client. Client shall promptly notify Moody's of, and use reasonable efforts to stop, any unauthorized use of any password or account or any other known or suspected breach of security. If Moody's is made aware of any Client utilization of the Products that may be in violation of applicable law or regulation, this Agreement, or third party rights, Moody's has the right, but not obligation to require Client to cease such use, or to disable Client's access to the Products.

3.7 Connectivity and Transmission. Client will be solely responsible, at its own expense, for acquiring, installing, maintaining and updating all connectivity equipment, hardware, software, and other equipment as may be necessary for Client to connect to, access and use the Products. Client acknowledges that use of the Products will involve transmission over the Internet, and over various other networks, which are not under the control of Moody's. Moody's is not responsible for any electronic communications and/or Business Data that are delayed, lost, altered, intercepted, or stored during the transmission of any data whatsoever across telecommunications networks not under its responsibility or supervision, such as Client's local network.

3.8 Business Data. Client will be responsible for the accuracy, quality and legality of the Business Data, and the means by which Business Data was acquired. Client shall not upload, transmit or process any Business Data in violation of this Agreement. If Moody's becomes aware of any such conduct, Moody's has the right, but not the obligation, to require Client to remove such Business Data, or to suspend or disable Client's access to the Products. Moody's will use commercially reasonable efforts to inform Client (which may be by email) prior to such disabling or suspension, unless Moody's determines that an immediate disabling or suspension is required.

3.9 Auditor and Supervisory Access. Client may permit its financial statement auditors, governmental supervisors and regulators to access the Products and the outputs therefrom, solely to the extent that such parties reasonably require such access in connection with their review and/or supervision of Client; provided that (a) in the case of governmental supervisors and regulators, Client seeks all confidentiality protections with respect to Moody's Confidential Information as may be available under applicable law or regulation, and (b) with respect to financial statement auditors, such auditors are subject to confidentiality obligations at least as protective of Moody's Confidential Information as the obligations imposed on Client hereunder.

3.10 Limited Distribution of Output. Where the Products are intended to produce calculations and/or reports to be included in regulatory filings or financial statements, Client may, subject to the restrictions set out in the "Moody's Trademarks" section below, reproduce the relevant output from the Products in such regulatory filings and financial statements that are made publicly available.

3.11 Consumer-Related Prohibitions. Notwithstanding anything to the contrary in this Agreement, any information supplied by Moody's via the Products that relates to individual persons may not under any circumstances be used (i) to establish an individual person's eligibility for credit, insurance, employment, government benefits or licenses or any other transaction initiated by an individual person; (ii) to collect on an account held by an individual person; (iii) to determine whether an individual person continues to meet the terms of an account; or (iv) if the Product or Services are to be used within the United States or for impacts within the United States, then for any other use that would be classified as a 'consumer report' or a 'permissible purpose' for the purposes of the United States Fair Credit Reporting Act, 15 U.S.C. §§ 1681 et seq.

3.12 Third Party Data. The information delivered through the Products may contain Third Party Data. Any such Third Party Data may include, but is not limited to, company financial data, firmographic data, security identifiers, interest rate data, market prices and spreads, and credit scores or ratings. The terms in this "Third Party Data" section shall apply to all Products containing Third Party Data.

3.13.1 Client acknowledges that Moody's obtains Third Party Data from Licensors and that Moody's relies upon such Third Party Data in preparing and providing certain Products to Client under this Agreement. Moody's duty to deliver such Products is subject in all respects to the timely supply of such Third Party Data by such Licensors. Client agrees that the availability of such Third Party Data to Client will cease automatically, without liability on the part of Moody's, any Licensor or its third-party providers, upon termination of Moody's access to the Third Party Data for any reason. Moody's may, from time to time and in its sole discretion, add to, remove or change any of its Licensors for any reason. If any resulting change or termination of Third Party Data would materially affect the functionality or operation of the applicable Product in Client's reasonable judgment, then Client may terminate its subscription as to the affected Product, upon written notice to Moody's, and Client shall be entitled to a refund of any fees prepaid to Moody's for the affected Product in respect of the period after such termination.

3.13.2 Client acknowledges that each Licensor and its suppliers have exclusive proprietary rights in the applicable Third Party Data. Client shall not furnish Third Party Data to any person or entity for reuse or retransmission without the prior written consent of Moody's and each applicable Licensor (for the avoidance of doubt, the permission in Section 3.9 shall be considered prior written consent). Client shall not use or permit any third party to use the Third Party Data for any unlawful or unauthorized purpose. If Client engages in, or permits another to engage in, any unlawful or material misuse of any Third Party Data, Moody's may, in addition to its other remedies, immediately cease providing Products to Client. Client agrees that the Third Party Data: (a) shall be used only for Client's internal use in connection with its use of the applicable Products, and (b) shall not be used to create a data file, or develop, verify, correct or complete any other database (including, without limitation, a security master database). Client shall also comply with any additional terms or restrictions regarding use of Third Party Data that the relevant Licensor and/or Moody's may otherwise specify from time to time by clear advance written notification, which will then be posted within the relevant Product or its website. In the event Client has an appropriate other agreement with a Licensor covering Client's use of the Third Party Data supplied by such Licensor, Client's use of such Third Party Data shall be governed by the terms of such other agreement for as long as it remains in effect, and nothing in this Agreement shall limit or affect Client's rights under such other agreement.

3.13.3 Client agrees and acknowledges that the CUSIP database and the information contained therein (collectively, "CGS Data") is and shall remain valuable intellectual property owned by, or licensed to, CUSIP Global Services ("CGS") and the American Bankers Association ("ABA"), and that no proprietary rights are being transferred to Client in such CGS Data. Client agrees that Client shall not publish or distribute in any medium the CGS Data or summaries or subsets thereof to any person or entity except in connection with the normal clearing and settlement of security transactions. Any use by Client outside of the clearing and settlement of transactions requires a license from CGS, along with an associated fee based on usage. Client agrees that misappropriation or misuse of CGS Data will cause serious damage to CGS and ABA, and that in such event money damages may not constitute sufficient compensation to CGS and ABA; consequently, Client agrees that in the event of any such misappropriation or misuse, CGS and ABA shall have the right to obtain injunctive relief in addition to any other legal or financial remedies to which CGS and ABA may be entitled. Client further agrees that the use of CUSIP numbers and descriptions is not intended to create or maintain, and does not serve the purpose of the creation or maintenance of, a master file or database of CUSIP descriptions or numbers for itself or any third-party recipient of such service, and is not intended to create and does not serve in any way as a substitute for the CUSIP MASTER TAPE, PRINT, DB, INTERNET, ELECTRONIC, CD-ROM SERVICES and/or any other future services developed by CGS. Client's use of and access to the CGS Data is expressly conditioned on Moody's Corporation maintaining a distribution agreement with CGS. In the event Moody's Corporation's distribution agreement is terminated, Client's right to access and use CGS Data via Moody's Corporation's and/or its affiliates' services shall automatically terminate. IN PARTICULAR, NEITHER CGS, ABA NOR ANY OF THEIR AFFILIATES MAKE ANY WARRANTIES, EXPRESS OR IMPLIED, AS TO THE ACCURACY, ADEQUACY OR COMPLETENESS OF ANY OF THE CGS DATA. THE CGS DATA ARE PROVIDED TO CLIENT ON AN "AS IS" BASIS, WITHOUT ANY WARRANTIES AS TO MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE OR USE, NOR WITH RESPECT TO THE RESULTS WHICH MAY BE OBTAINED FROM THE USE OF THE CGS DATA. NEITHER CGS, ABA NOR ANY OF THEIR AFFILIATES SHALL HAVE ANY RESPONSIBILITY OR LIABILITY FOR ANY ERRORS OR OMISSIONS, NOR SHALL THEY BE LIABLE FOR ANY DAMAGES, WHETHER DIRECT OR INDIRECT, SPECIAL OR CONSEQUENTIAL, EVEN IF THEY HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. IN NO EVENT SHALL THE LIABILITY OF CGS, ABA OR ANY OF THEIR AFFILIATES PURSUANT TO ANY CAUSE OF ACTION, WHETHER IN CONTRACT, TORT, OR OTHERWISE, EXCEED THE FEE PAID BY CLIENT FOR ACCESS TO THE CGS DATA WITH RESPECT TO THE MONTH IN WHICH SUCH CAUSE OF ACTION IS ALLEGED TO HAVE ARISEN. FURTHERMORE, CGS AND ABA SHALL HAVE NO RESPONSIBILITY OR LIABILITY FOR DELAYS OR FAILURES DUE TO CIRCUMSTANCES BEYOND THEIR CONTROL. Client agrees that the foregoing terms and conditions in this paragraph shall survive any termination of its right of access to the materials identified above.

3.13.4 (A) MIS hereby discloses that most issuers of debt securities (including corporate and municipal bonds, debentures, notes and commercial paper) and preferred stock rated by MIS have, prior to assignment of any credit rating, agreed to pay to MIS, for the credit rating opinions and services rendered by MIS. Moody's Corporation and its wholly-owned credit rating agency subsidiary, MIS, also maintain policies and procedures to address the independence of MIS's credit ratings and credit rating processes. Information regarding certain affiliations that may exist between directors of Moody's Corporation and rated entities, and between entities who hold ratings from MIS and have also publicly reported to the U.S. Securities and Exchange Commission an ownership interest in Moody's Corporation of more than 5%, is posted annually on the Moody's Corporation website at www.moody.com. Client expressly agrees, on behalf of itself and each Authorized User that it permits to use any Product containing MIS Ratings in accordance with the terms of this Agreement, that (a) the credit ratings and other opinions contained in such Products are, and will be construed solely as, statements of opinion and not statements of fact or recommendations to purchase, hold or sell any securities, (b) each rating or other opinion will be weighed solely as one factor in any investment decision made by or on behalf of Client or any Authorized User, and (c) it will accordingly make its own study and evaluation of each security, and of each issuer and guarantor of, and each provider of credit support for, each security that it may consider purchasing, holding or selling. **(B)** Moody's SF Japan K.K., Moody's Local AR Agente de Calificación de Riesgo S.A., Moody's Local BR Agência de Classificação de Risco LTDA, Moody's Local MX S.A. de C.V., I.C.V., Moody's Local PE Clasificadora de Riesgo S.A., and Moody's Local PA Calificadora de Riesgo S.A. (collectively, the "Moody's Non-NRSRO CRAs") are all indirectly wholly-owned credit rating agency subsidiaries of Moody's Corporation. None of the Moody's Non-NRSRO CRAs is a Nationally Recognized Statistical Rating Organization.

3.13.5 CLIENT ACKNOWLEDGES THAT NO LICENSOR SHALL BE LIABLE DIRECTLY OR INDIRECTLY TO CLIENT FOR ANY CLAIMS, LOSSES, OR LIABILITY WHATSOEVER RELATING IN ANY WAY TO THE PRODUCTS OR ANY THIRD PARTY DATA. Each Licensor shall be a third-party beneficiary under this Agreement to the extent necessary to enforce the restrictions and enjoy the benefits of the disclaimers and limitations set forth in this Agreement.

3.13.6 ALL THIRD PARTY DATA IS SUPPLIED "AS IS", AND MOODY'S EXPRESSLY DISCLAIMS ANY WARRANTIES, WHETHER ORAL OR WRITTEN, INCLUDING WITHOUT LIMITATION WARRANTIES OF ACCURACY, TIMELINESS, COMPLETENESS, RESULTS, AND THE IMPLIED WARRANTIES OF NON-INFRINGEMENT, TITLE, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE. NOTWITHSTANDING ANYTHING IN THIS AGREEMENT TO THE CONTRARY, MOODY'S OBLIGATIONS TO DEFEND AND INDEMNIFY CLIENT INDEMNIFIED PARTIES SHALL NOT APPLY WITH RESPECT TO ANY CLAIMS ARISING FROM ANY THIRD PARTY DATA.

3.14 Access to Business Data. Subject to any scheduled maintenance or other technical limitations, Moody's shall continuously facilitate Client's access to Business Data stored within the Products. The Products shall include appropriate functionality for import, upload, export and extraction of Business Data.

4. INTELLECTUAL PROPERTY AND PROPRIETARY RIGHTS

4.1 Intellectual Property; Reservation of Rights. Client shall obtain no rights in the Products, Services and Documentation other than as expressly set forth in this Agreement. Subject to the limited rights granted in this Agreement, Moody's, its Affiliates, and the Licensors, as applicable, reserve all right, title and interest in and to the Products, Services and Documentation, including all related intellectual property rights. Client shall comply with the restrictions applicable to the Products, Services and Documentation set out in this Agreement and shall take all reasonable steps to prevent their unauthorized access, use, copying or disclosure, and shall promptly notify Moody's of any such unauthorized access or use.

4.2 Moody's Trademarks. Client is strictly prohibited from using any Moody's product or corporate name, designation, logo, trade name, trademark, service name or service mark in any marketing materials, regulatory filing, financial statements, offering circular, prospectus or otherwise, without the prior written consent of Moody's, which may be withheld by Moody's in its sole and absolute discretion.

4.3 Government Restricted Rights. This section applies to Products licensed directly or indirectly by or on behalf of any government. The Products are commercial items, were developed entirely at private expense and without the use of any government funds, and no part of the Products were first produced in the performance of any government contract. Any use, modification, reproduction, release, performance, display, or disclosure of any of the foregoing by any government shall be governed solely by the terms of this Agreement and shall be prohibited except to the extent expressly permitted by the terms of this Agreement, and no license in or to any Product is granted to any government under any different terms.

4.4 Ownership and License to Business Data. As between Moody's and Client, Client owns the Business Data and all intellectual property rights therein. Client hereby grants to Moody's a royalty-free, worldwide license to access and use the Business Data to configure and/or provide the Products and Services to Client, and otherwise prevent or address service or technical problems.

4.5 Usage Data. Moody's may access and collect diagnostic and usage information in connection with Client's access to or use of the Products, including software version, information pertaining to the performance and health of the solution, usage statistics and any other information regarding the performance, usability, and health of the Products. As between Moody's and Client, Moody's owns all such diagnostic and usage information, excluding however any such data that constitutes personal data or that identifies Client as the source of the data.

5. CONTRACTUAL FRAMEWORK, ORDER FORMS, TERM AND TERMINATION

5.1 Agreement. The Agreement creates a contractual framework under which the Client and any Client Affiliate may order Products and Services to be supplied by Moody's or a Moody's Affiliate. Moody's acknowledges that Client does not accept any terms or conditions provided together with the Products or Services, meaning that only terms and conditions set forth in or referenced by this Agreement and the Order Form constitute the agreement of the Parties.

5.2 Order Forms. At any time beginning on the Effective Date, Client or a Client Affiliate may request to receive Products and/or Services from Moody's or a Moody's Affiliate on the terms set forth in the Agreement. Whenever the Client or a Client Affiliate wishes to order Products and/or Services hereunder it shall notify Moody's or the relevant Moody's Affiliate, and such parties will negotiate the terms relating to such order. Upon signature of an Order Form by the duly authorized signatories of Moody's or the Moody's Affiliate and the Client or Client Affiliate, a new agreement shall be formed between the signing parties whereby: (a) the terms of the Agreement shall be incorporated into the Order Form as if written out in full therein; (b) any reference in the Agreement to "Moody's" for purposes of such Order Form shall be deemed to refer to Moody's or the relevant contracting Moody's Affiliate; and (c) any reference in the Agreement to "Client" for purposes of such Order Form shall be deemed to refer to Client or the relevant contracting Client Affiliate.

5.3. Term. The initial term of a Product subscription purchased on an Order Form ("Initial Term") shall be one year unless a different initial term is specified in the Order Form. Following the Initial Term, the term of each Product subscription shall renew automatically for successive renewal term of one year each (or such longer term as specified on the Order Form) (each a "Renewal Term") unless either Moody's or Client provides notice of non-renewal to the other party not less than (i) thirty (30) days prior to the first day of any such Renewal Term for Client and (ii) six (6) months prior to the first day of any such Renewal Term for Moody's. The term for Professional Services ordered by Client on an Order Form shall be as set out in such Order Form, or until Moody's completes such Professional Services.

5.4 Termination. The Agreement shall remain in full force and effect until terminated by either the Client upon thirty (30) days prior written notice to Moody's or by Moody's upon one hundred and eighty (180) days prior written notice to the Client, provided that termination of the Agreement itself under this Section shall not affect any individual Order Forms then outstanding. Such outstanding Order Forms shall continue in full force and effect until terminated and shall continue to be governed by the terms of the Agreement as incorporated therein pursuant to the "Order Forms" section above, provided however that such outstanding Order Forms shall no longer be subject to Section 5.3 above and therefore will not renew automatically at the end of their Initial Term or Renewal Term. Either Client or Moody's may terminate an Order Form (i) upon thirty (30) days' notice to the other party of a material breach if such material breach remains uncured at the expiration of such period; or (ii) if the other party ceases to function as a going concern or becomes the subject of a petition in bankruptcy or any other proceeding relating to insolvency, receivership, liquidation or assignment for the benefit of creditors.

5.5 Exit Management. Upon termination of the Agreement or an Order Form for any reason, Moody's shall (at Client's request and at Client's cost) provide additional support in relation to exit management. Such support may include engaging with a third party supplier, provided that such engagement shall not require Moody's to share commercially sensitive information with a competitor of Moody's.

5.6 Effect of Termination. Upon termination of an Order Form for any reason, and except as set forth otherwise in the "Retention Policies" section below, Client shall (a) cease all use of the Product(s) (or only such Products for which the relevant subscription is terminated); (b) promptly destroy or return to Moody's (at Client's expense) any affected Products and all material containing the affected Products, and any and all related Documentation, materials and other Moody's intellectual property (including its Confidential Information); (c) expunge all affected Products from its computer systems; and (d) upon request, certify to Moody's in writing Client's compliance with this section. Notwithstanding the foregoing, this section does not require Client to destroy, return or expunge: (i) print or electronic copies of its presentations containing limited excerpts of data obtained from the Products and made in conformity with the license granted under this Agreement; or (ii) portions of the Products that constitute electronic data that is generally inaccessible or that has been stored on Client's backup systems in the ordinary course of business as part of standard backup procedures, but only to the extent that such data is accessible only by person(s) whose function is primarily information technology, and who have only limited access to such data as necessary to perform such information technology duties. In addition, Client may retain one copy of any such data from the Products as is necessary to comply with applicable audit, legal or regulatory requirements, professional obligations and standards and internal document retention policies, provided any such data may only be accessed for such purposes and may not be used for any other purpose whatsoever (including, but not limited to, any commercial purpose). For a thirty (30) day period following termination of this Agreement, upon request, Moody's shall make available the Business Data to Client solely for downloading a copy of any Business Data in an easily accessible format (and not for any production purpose within Moody's systems). After such thirty (30) day period, Moody's shall have no obligation to maintain or provide the Business Data and may, except as otherwise permitted in this Agreement, promptly delete the Business Data from its systems.

6. PAYMENT OF FEES

6.1 Fees. Client shall pay to Moody's the fees for each Product or Service as set forth on the Order Form. Except as otherwise specified herein or in the Order Form, all fees (i) shall be payable by Client annually in advance and within thirty (30) days of the invoice date; and (ii) are non-refundable and non-cancellable. Except as otherwise provided in each applicable Order Form, Moody's may change the subscription fees for Products from time to time, which change shall become effective upon the commencement of the next Renewal Term for such Products, subject to Client's termination and non-renewal rights as set forth in the "Term" and "Termination" sections above; provided that Moody's will provide Client with at least ninety (90) days' prior written notice of any such change. Without prejudice to its termination rights, Moody's may suspend any Product subscription or Services if Client fails to pay the applicable fees when due.

6.2 Taxes. The fees set forth herein do not include any foreign, federal, state or local sales, value added, service, use, withholding or other similar taxes, tariffs or duties, however designated, levied against the sale, licensing, delivery or use of the Products or Services provided under this Agreement. Client shall pay, or reimburse Moody's for, all such taxes; provided, however, that Client shall not be liable for any taxes based on Moody's net income. All fees are exclusive of taxes, if any. Client shall be responsible for any federal, state, local, value-added, service, withholding or similar taxes, if applicable, that are or may be imposed on any transaction hereunder (excluding any taxes based on Moody's net income), unless Client (i) represents and warrants to Moody's that it is exempt by law from payment or collection of any applicable taxes, and (ii) provides Moody's with tax exemption certificates as evidence of such exemption(s).

6.3 Overdue Charges. If Client fails to pay an invoice by its due date, Moody's may (without prejudice to any other right or remedy it may have) suspend access to any applicable Product or Service and impose a finance charge on all amounts past due equal to the lesser of one and one half percent (1-1/2%) per month or the maximum allowed by law, and may charge Client for Moody's reasonable expenses of collection of such invoice and/or finance charges, including but not limited to, attorneys' and experts' fees and court costs.

7. REPRESENTATIONS, WARRANTIES AND DISCLAIMER

7.1 General Warranties. Each of Client and Moody's represents and warrants that (a) it has validly entered into this Agreement, (b) it will comply with all applicable laws and regulations affecting its performance hereunder, and (c) it is not in default or otherwise non-compliant in any material respect with any contract which might reasonably be expected to have a material adverse impact on its performance under this Agreement.

7.2 Product Warranties and Remedies. Moody's warrants that during the applicable subscription term for a Product: (a) the Product will perform materially in accordance with the Documentation; and (b) although Moody's may modify the Products in its discretion, Moody's will not materially decrease the overall functionality of the Product. A Product may have additional warranties stated in the relevant Order Form or schedule for Support Services as incorporated into the Order Form.

7.3 Information Security Warranties. Moody's warrants that during the applicable subscription term for a Product: (a) it will maintain safeguards for protecting the security, confidentiality and integrity of the Business Data as set out in the Information Security Standards Schedule attached to this Agreement as Schedule 2, which safeguards will include measures designed to prevent unauthorized access or disclosure of Business Data other than by Authorized Users; and (b) it will not materially decrease the overall security of the Product. Each Order Form issued pursuant to this Agreement shall in addition incorporate the provisions of Schedule 3 (*Digital Operational Resilience*) by reference.

7.4 No Conflict. This Agreement and the transactions contemplated hereby are not in conflict in any material respect with any other agreements or judicial or administrative orders to which Moody's or Client are a party or by which they may be bound.

7.5 Exclusions. No warranty under this Agreement or Order Form (including any warranty set forth in a schedule as incorporated into an Order Form) covers any alterations, modifications or changes to a Product undertaken in any way by anyone other than Moody's. Moody's is not responsible for problems associated with or caused by incompatible operating systems or equipment, for problems in the interaction of the Product with software, hardware or systems not furnished or maintained by Moody's, or for Client's failure to comply with all system requirements set forth in the applicable Documentation.

7.6 No Other Warranties. No oral or written information or advice given by Moody's or any of its Affiliates or their employees or agents shall constitute a representation or warranty unless such information or advice is expressly incorporated into this Agreement by a written agreement between the Parties. Client acknowledges and agrees that Moody's is not acting as a financial advisor in providing the Products, Services or Deliverables, and neither the Products, Services, Deliverables, nor the output from the Products are a recommendation to buy, hold or sell any securities or any other form of investment advice. Client agrees that neither Moody's nor Client intends to create a fiduciary relationship between Moody's and Client, and Client will make its own decisions to extend, call, purchase or sell any loan or security or make any other financial or business decision. Client acknowledges that Moody's does not intend or agree to be named as an "expert" under applicable securities laws. Client agrees and understands that the results from the Products are dependent on the assumptions and input provided by Client, as well as Client's correct usage of the most current version of the Products provided by Moody's.

7.7 MIS Credit Ratings. Certain Products and Deliverables may consist of quantitative estimates of default, or may consist of software, models and data used by MIS in the credit ratings process or may be designed to indicate what an MIS rating would be based on certain assumptions, financial and portfolio data and/or other variable inputs. However, none of the Products or Deliverables represents or constitutes an actual MIS rating, rating action or opinion unless specifically designated as such by MIS, whether or not any of the assumptions or other data are correct, or the ultimate events related thereto differ materially from the factors used as inputs to such products. Nothing in this Agreement will compel MIS to assign, as a result of any Products or Deliverables offered hereunder, a particular rating or any revision thereof to any securities, debt or other instruments. Client understands that MIS may at any time refuse to issue any rating, or, if already issued, revise or withdraw such rating. Client further agrees not to represent, imply or otherwise suggest that any Products or Deliverables constitutes or affects an MIS rating or opinion, except as set out in a specific published MIS rating action.

7.8 DISCLAIMER. ANY EXPRESS WARRANTIES AS MAY BE SET FORTH IN THIS AGREEMENT ARE THE ONLY REPRESENTATIONS AND WARRANTIES CONCERNING THE PRODUCTS, SERVICES AND DELIVERABLES. MOODY'S EXPRESSLY DISCLAIMS ALL OTHER REPRESENTATIONS AND WARRANTIES, WHETHER ORAL OR WRITTEN, INCLUDING WITHOUT LIMITATION WARRANTIES OF ACCURACY, TIMELINESS, COMPLETENESS, RESULTS, AND ANY IMPLIED WARRANTIES OF NON-INFRINGEMENT, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE, EVEN IF MOODY'S HAS BEEN INFORMED OF SUCH PURPOSE, OR ANY REPRESENTATIONS AND WARRANTIES ARISING FROM COURSE OF PERFORMANCE, COURSE OF DEALING, OR USAGE OF TRADE. MOODY'S SHALL NOT BE RESPONSIBLE FOR ANY NON-COMPLIANT USE OF THE PRODUCTS, SERVICES OR DELIVERABLES BY CLIENT AND/OR AUTHORIZED USERS. WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, MOODY'S DOES NOT WARRANT OR GUARANTEE THAT THE PRODUCTS, SERVICES OR DELIVERABLES WILL ACCURATELY PREDICT COUNTERPARTY RISK, CREDIT RISK OR LOSS, OR PREVENT BAD DECISIONS REGARDING EXTENSIONS OF CREDIT, INVESTMENTS, LOANS, OR OTHER BUSINESS ACTIVITIES, NOR SHALL MOODY'S BE RESPONSIBLE FOR THE CONSEQUENCES OF ANY SUCH DECISIONS. MOODY'S MAKES NO REPRESENTATION OR WARRANTY WITH RESPECT TO HARDWARE OR NETWORKS OUTSIDE MOODY'S CONTROL. NO EMPLOYEE, DEALER, DISTRIBUTOR, REPRESENTATIVE OR AGENT OF MOODY'S IS AUTHORIZED TO ALTER OR EXCEED THE WARRANTY OBLIGATIONS OF MOODY'S AS SET FORTH HEREIN. THE DISCLAIMERS IN THIS SECTION AND ELSEWHERE IN THIS AGREEMENT ARE MADE ON BEHALF OF MOODY'S, ITS AFFILIATES AND ITS LICENSORS.

8. INDEMNIFICATION

8.1 Moody's Indemnification. Moody's shall defend Client, any Client Affiliate permitted to use the Products or Deliverables under this Agreement, and Client's Authorized Users (together, the "Client Indemnified Parties"), from and against any claim, demand, suit or proceeding made or brought against the Client Indemnified Parties by a third party alleging that the Products or Deliverables as provided to Client by Moody's infringe or misappropriate such third party's intellectual property rights, and will indemnify the Client Indemnified Parties from any damages, attorney's fees and costs finally awarded against the Client Indemnified Parties as a result of, or for amounts paid in settlement of, such claim, demand, suit or proceeding; provided however, that (a) Client shall have promptly provided Moody's with written notice of the claim, demand, suit, or proceeding related thereto and reasonable cooperation, information, and assistance in connection therewith at Moody's expense (except that Client's failure to do so will not relieve Moody's of its obligations under this section except to the extent that Moody's is materially prejudiced by such failure), and (b) Moody's shall have sole control and authority with respect to the defense, settlement, or compromise thereof, provided that Client's reasonable consent to any such settlement or compromise shall be required unless it includes a full release of liability for all Client Indemnified Parties. If any Product or Deliverable becomes, or in Moody's opinion is likely to become, the subject of a claimed intellectual property infringement or misappropriation claim, Moody's may, at its option and at no cost to Client: (a) procure for Client the right or license to continue using the Product or Deliverable; (b) replace or modify such Product or Deliverable such that they are no longer alleged to infringe or misappropriate, without incurring a material diminution in performance or function; or (c) terminate the applicable subscription upon thirty (30) days' notice to Client, and refund to Client the portion of the fees pre-paid by Client for the returned materials that are attributable for the period of time after termination. Moody's obligations to defend and indemnify the Client Indemnified Parties under this section shall not apply if the claim, demand, suit or proceeding is caused by, or results from: (1) the combination or use of Products or Deliverables with non-Moody's software, hardware, services or data, if such claim, demand, suit or proceeding would have been avoided by the non-combined or exclusive use of the Products or Deliverables, (2) modification of the Products or Deliverables by anyone other than Moody's if such claim, demand, suit or proceeding would have been avoided by use of the unmodified Products or Deliverables, (3) Client continuing the allegedly infringing or misappropriating use of the Products or Deliverables after receiving modifications that would have avoided the alleged infringement or misappropriation, or (d) use of the Products or Deliverables in a manner that is in not in compliance with the terms of this Agreement and/or the applicable Documentation. Client shall be entitled, at its own expense, to participate in the defense of any claim subject to this section through counsel of its own choosing, and Moody's shall provide Client with reasonable cooperation and assistance in such defense.

8.2 Third Party Data. Solely to the extent that Moody's is indemnified by the Licensor, Moody's shall defend or settle any claim, suit, or proceeding brought by a third party against Client alleging that the Third Party Data as provided to Client by Moody's infringes or misappropriates such third party's intellectual property rights. In the event that such Third Party Data becomes the subject of any claim, Moody's obligations under this Section 8.2 shall only apply if: (i) Client provides Moody's with prompt written notice of any such claim, suit or proceeding; (ii) Moody's controls the defense and settlement of such claim, suit or proceeding; and (iii) Client provides Moody's with all information, reasonable assistance, and authority to fully defend and settle such claim, suit or proceeding.

8.3 Third Party Data Remedies. In the event that a final injunction is issued against the use of the Third Party Data by Client for reason of infringement of a trademark or copyright, where Moody's is indemnified by the relevant Licensor, Moody's may, at its sole option and expense, either: (i) use commercially reasonable efforts to obtain for Client the right to continue using the Third Party Data; (ii) replace or modify the Third Party Data, to the extent permitted, so that it becomes non-infringing; or (iii) terminate this Agreement and simultaneously refund to Client a prorated amount equal to the unearned portion of the last license fee payment made by Client for the Third Party Data pursuant to this Agreement.

8.4 Client Indemnification. Client shall defend Moody's, its Affiliates, and each of their respective officers, directors, employees, shareholders, legal representatives, and agents (the "Moody's Indemnified Parties"), from and against any claim, demand, suit or proceeding made or brought against the Moody's Indemnified Parties by a third party based on or arising out of Client's breach of the "Consumer-Related Prohibitions" section above or Client's dissemination or distribution of any output from the Products in breach of an applicable Usage Parameter, and will indemnify the Moody's Indemnified Parties from any damages, attorney's fees and costs finally awarded against the Moody's Indemnified Parties as a result of, or for amounts paid in settlement of, such claim, demand, suit or proceeding; provided however, that (a) Moody's shall have promptly provided Client with written notice of the claim, demand, suit, or proceeding related thereto and reasonable cooperation, information, and assistance in connection therewith at Moody's expense (except that Moody's failure to do so will not relieve Client of its obligations under this section except to the extent that Client is materially prejudiced by such failure), and (b) Client shall have sole control and authority with respect to the defense, settlement, or compromise thereof, provided that Moody's reasonable consent to any such settlement or compromise shall be required unless it includes a full release of liability for all Moody's Indemnified Parties. Moody's shall be entitled, at its own expense, to participate in the defense of any claim subject to this section through counsel of its own choosing, and Client shall provide Moody's with reasonable cooperation and assistance in such defense.

8.5 Exclusive Remedy. A party's defense and indemnification obligations described in this "Indemnification" section are the indemnifying party's sole liability to, and the indemnified party's exclusive remedy against, the other party for a third-party claim as set forth in this section.

9. LIABILITY

9.1 EXCLUSIONS AND LIMITATIONS OF LIABILITY

NONE OF CLIENT, MOODY'S, THEIR AFFILIATES, AND/OR MOODY'S LICENSORS SHALL BE LIABLE FOR ANY INDIRECT, SPECIAL, INCIDENTAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES WHATSOEVER, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR THE PRODUCTS AND SERVICES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR LOSSES. SUBJECT TO SECTION 9.2 BELOW, IN NO EVENT SHALL THE AGGREGATE LIABILITY OF MOODY'S, ITS AFFILIATES AND ITS LICENSORS, OR THE AGGREGATE LIABILITY OF CLIENT AND ITS AUTHORIZED AFFILIATES, ARISING FROM THIS AGREEMENT OR RELATED TO THE PRODUCTS OR SERVICES, EXCEED THE AGGREGATE FEES AND CHARGES PAID OR PAYABLE BY CLIENT TO MOODY'S UNDER THE RELEVANT ORDER FORM DURING THE TWELVE (12) MONTH PERIOD PRECEDING THE DATE ON WHICH THE APPLICABLE CLAIM AROSE. THE FOREGOING EXCLUSIONS AND LIMITATIONS SHALL APPLY REGARDLESS OF HOW SUCH DAMAGES OR LOSSES ARISE, WHETHER IN AN ACTION OF CONTRACT, NEGLIGENCE, TORT OR OTHERWISE, REGARDLESS OF THE CAUSE OF THE DAMAGE OR LOSS, AND REGARDLESS OF THE LEGAL RIGHT CLAIMED TO HAVE BEEN VIOLATED. NOTWITHSTANDING THE FOREGOING, NOTHING IN THIS SECTION SHALL LIMIT OR EXCLUDE: (I) CLIENT'S OBLIGATIONS TO PAY ANY FEES DUE UNDER THIS AGREEMENT; (II) A VIOLATION OF A PARTY OR ITS AFFILIATE'S INTELLECTUAL PROPERTY RIGHTS; (III) A PARTY'S INDEMNIFICATION OBLIGATIONS UNDER THIS AGREEMENT (INCLUDING ANY SUCH OBLIGATION UNDER AN ORDER FORM); OR (IV) A PARTY'S LIABILITY ARISING OUT OF SUCH PARTY'S FRAUD OR WILFUL MISCONDUCT, OR WHICH CANNOT OTHERWISE BE LIMITED OR EXCLUDED UNDER APPLICABLE LAWS.

9.2 Limitation of Liability – Confidentiality and Privacy. Notwithstanding the foregoing, in no event shall the aggregate liability of Moody's or its Affiliates arising from a breach of Section 10 (*Confidentiality*) of this Agreement or a Personal Data Processing Schedule attached to an Order Form exceed two hundred percent (200%) of the aggregate fees and charges paid or payable by Client to Moody's under the relevant Order Form during the twelve (12) month period preceding the date on which the applicable claim arose.

9.3 Insurance. Moody's shall maintain, for the full term of the Agreement, at its sole cost and expense the following insurance: a) commercial general liability insurance for bodily injury and property damage, advertising and personal injury liability, contractual liability with limits of not less than \$1,000,000 each occurrence, \$2,000,000 general aggregate; b) commercial automobile liability insurance for all owned, leased, non-owned and hired vehicles for bodily injury and property damage with limits of not less than \$1,000,000 per accident; c) workers' compensation and employers' liability insurance in accordance with the applicable state statutes and laws with employers' liability limits not less than \$1,000,000; d) umbrella liability insurance follow form of the employers' liability, commercial general liability and commercial automobile liability insurance policies with limits not less than \$5,000,000. All insurance shall use insurers with a minimum A.M. Best rating of A- VIII. Upon request, Moody's will provide an ACORD certificate of insurance evidencing the above coverage.

10. CONFIDENTIALITY

10.1 Non-Disclosure. The Receiving Party agrees to maintain in strict confidence all Confidential Information of the other Party and (a) not to use the Disclosing Party's Confidential Information for any purpose other than as contemplated by this Agreement, (b) not to disclose the Disclosing Party's Confidential Information to any third party other than its Affiliates, Authorized Users, agents, consultants and advisors who have a need to know the Confidential Information for purposes contemplated by this Agreement and are subject to non-use and confidentiality provisions at least as protective of the Disclosing Party as are contained in this section, and (c) to protect the Disclosing Party's Confidential Information with at least the same degree of care it uses to protect its own Confidential Information, but at a minimum to use commercially reasonable efforts. The confidentiality obligations of this Agreement shall not apply to information received by a party to the extent that it (i) was lawfully received from a third party free of any obligation to keep it confidential; (ii) is or becomes publicly available, by other than unauthorized disclosure; (iii) is independently developed without any reference to the Disclosing Party's Confidential Information, as evidenced by contemporaneous written records of Receiving Party; or (iv) is required to be disclosed by law, regulation or court order, provided that the Receiving Party will give the Disclosing Party prompt notice prior to such disclosure, and will reasonably cooperate with the Disclosing Party, at the Disclosing Party's expense, to oppose or seek a protective order or other limitation on such disclosure.

10.2 Inside Information. Each Party confirms that it is aware that in multiple countries, securities laws or regulations prohibit any person who has material non-public information about a listed company from purchasing or selling securities of such company. The rules applying to the disclosure of insider information and to the prevention of insider trading are applicable to the disclosure and use of the Confidential Information and shall be strictly observed by the Parties. Each Party confirms that it and its representatives will take all reasonable action necessary or appropriate to prevent the use of any Confidential Information in a way which might violate applicable law or regulation.

10.3 Return of Confidential Information. Subject to the "Retention Policies" section below, at any time upon the request of the Disclosing Party, the Receiving Party shall return or destroy the relevant Confidential Information of the Disclosing Party, including any copies thereof, and certify in writing that it has complied with this obligation.

10.4 Retention Policies. This Agreement does not require a Receiving Party to return or destroy any such portions of the Disclosing Party's Confidential Information that constitute electronic data that is generally inaccessible or that has been stored on the Receiving Party's backup systems in the ordinary course of business as part of standard backup procedures, but only to the extent that such Confidential Information is only accessible by person(s) whose function is primarily information technology, and provided that such person(s) only have limited access to such Confidential Information to enable the performance of such information technology duties. In addition, the Receiving Party may retain one copy of any such Confidential Information as is necessary to comply with applicable audit, legal or regulatory requirements, professional obligations and standards and internal document retention policies, provided any such Confidential Information may only be accessed for such purposes and may not be used for any other purpose whatsoever (including, but not limited to, any production or commercial purpose).

10.5 Notification, Mitigation and Remedies. If the Receiving Party becomes aware of any loss, destruction, unauthorized use or disclosure of the Confidential Information of the Disclosing Party, the Receiving Party shall promptly notify the Disclosing Party of all facts known to it concerning such loss, destruction, unauthorized use or disclosure and take all reasonable steps to mitigate any potential harm or further disclosure, loss or destruction of such Confidential Information. Client and Moody's acknowledge that any disclosure or misappropriation of Confidential Information in violation of this Agreement could cause irreparable harm, the amount of which may be difficult to determine, thus potentially making financial remedies at law inadequate. Each Party, therefore, agrees that the other Party shall have the right to apply to any court of competent jurisdiction for an order restraining any breach or threatened breach of this Section 10 (*Confidentiality*) and for any other relief as such other Party deems appropriate. This right shall be in addition to any other remedy available in law or in equity.

11. GENERAL TERMS

11.1 Independent Contractors. Moody's and Client are independent contractors, and nothing in this Agreement will create any partnership, joint venture, agency, franchise, sales representative, or employment relationship between the Parties. Neither party is an agent or representative of the other party, nor is either party authorized to make any representations or warranties or assume or create any other obligations on behalf of the other party.

11.2 Moody's Code of Conduct. Moody's is committed to complying with all laws and regulations that apply to its business, as reflected in the Moody's Code of Business Conduct, available on its website at www.moody.com or a successor webpage where Moody's generally posts its policies. The current Code of Business Conduct is attached to this Agreement as Schedule 4.

11.3 Sanctions Compliance. Each of Moody's and Client represents and warrants to the other party that it is not: (a) subject to asset freeze sanctions imposed by the United States, United Kingdom, Switzerland, European Union, United Nations, or any other governmental authority having jurisdiction over the Parties to this Agreement, nor is it Controlled by any such person(s) whether individually or collectively; (b) subject to any other applicable economic or financial sanctions or export restrictions which prohibit the provision by Moody's of the products or services under this Agreement, nor is it Controlled by any such person(s) whether individually or in the aggregate; (c) located, organized, established, headquartered in, or, if a natural person, ordinarily resident, in, or a citizen or national of, a country or territory that is or becomes subject to comprehensive geographic sanctions imposed by the U.S. Government (as of the date of this Agreement, Cuba, North Korea, Iran, Syria, and the Crimea, Donetsk and Luhansk regions of Ukraine). Each party agrees that it will promptly notify the other party if it learns that any warranty made herein is no longer accurate. Additionally, Client shall not (i) supply, or make available (whether directly or indirectly), any Moody's products, data or services to any person that meets the criteria set forth in clause (a), (b), or (c) above (each a "Prohibited Entity"), or use Moody's products, data or services for the benefit of, or for any transaction involving any Prohibited Entity; (ii) supply to Moody's any data related to any Prohibited Entity, (iii) supply, or make available (whether directly or indirectly), Moody's products, data or services to any person located, organized, established or headquartered in, or if a natural person, ordinarily resident in, or a citizen or national of, a country or territory where the provision of such products, data or services, by Moody's or otherwise, would be prohibited; or (iv) use Moody's products, data or services in a manner that would violate any applicable law or regulation. For the avoidance of doubt, the foregoing prohibitions apply notwithstanding any terms in the Order Form, addendum or other writing, whether express or implied. Accordingly, even if the scope of a usage right granted in the Order Form, addendum or any other writing would otherwise include a Prohibited Entity, the prohibitions herein shall prevail. For the purposes of this provision, "person" means any natural or legal person. If Client is in breach of this provision, or Moody's determines that it is prohibited by any applicable law or regulation from providing products or services under this Agreement, or Moody's determines that it will cease providing any or all products or services in any country or territory in which this Agreement is to be performed, in addition to any other rights or remedies it may have, Moody's may immediately terminate or suspend performance under this Agreement without regard to any cure period that might otherwise apply. Client shall not supply, or make available (whether directly or indirectly), any of the products or services to any natural person or entity located, organized, established, headquartered, or ordinarily resident in Russia.

11.4 Anti-Bribery Compliance. Each party warrants that it: (a) has not, in connection with the transactions contemplated by this Agreement, made any payment or transfer anything of value to any person or entity if such payments or transfers would violate the U.S. Foreign Corrupt Practices Act, the UK Bribery Act or any other analogous anti-bribery legislation in any other jurisdictions, nor will it do so; and (b) has adopted policies applicable to all its personnel that expressly forbid illegal payments or other actions that would contravene applicable anti-bribery laws.

11.5 Amendments / Severability. This Agreement may not be amended except through a written agreement by authorized representatives of each party. If any provision of this Agreement is held unenforceable by a court of competent jurisdiction, that provision shall be enforced to the maximum extent permissible so as to give effect to the intent of the Parties, and the remainder of this Agreement shall continue in full force and effect.

11.6 Inspection. During the term of this Agreement, Moody's may inspect at Client's location Client's books and records and the computer systems on which any Products are accessed, stored, processed or used by Client solely for purposes of determining compliance with the terms of this Agreement. Moody's shall be entitled to reasonable access to the Client's premises, data, devices, information, systems and networks used for access, store, process or use the Products by the Client to the extent reasonably necessary to meet the Inspection objectives. Under no circumstances will Moody's be provided access to any information which would require the Client to breach any laws, regulations or its obligations to any third party. Inspections are subject to: (i) prior reasonable notice to commensurate with the audit duration and the required assistance, such notice to include details of the participants, scope and agenda of the Inspection; (ii) a maximum of one Inspection in each calendar year (iii) Moody's compliance with the Client security and confidentiality requirements; and (iv) mutual agreement on the scheduling of the Inspection (the Client reserves the right to arrange the Inspection to ensure it does not adversely affect the Client's business operations). If an Inspection identifies that the Client is failing to comply with its material obligations under this Agreement then, the Client shall take necessary steps to comply with its obligations within a reasonable time. Moody's failure to conduct an inspection shall not relieve Client of any obligations under this Agreement. Any information obtained by Moody's in the course of an inspection may only be used by Moody's in enforcing its rights under this Agreement, and otherwise shall be treated by Moody's as Confidential Information of Client.

11.7 Subcontractors. Moody's may engage subcontractors to provide the Products and/or to perform all or any portion of the Services or to assist in any other aspect of providing the Products and Services hereunder, provided that Moody's remains responsible and liable for the performance of the subcontractor and its compliance with this Agreement.

11.8 Force Majeure. Performance under this Agreement may be postponed or extended automatically to the extent that either party is prevented from performing its obligations under this Agreement as a result of a cause beyond its reasonable control, such as an accident, act of a civil or military authority, act of God, earthquake, embargo, fire, flood, intervening change in law or governmental regulation, riot, strike, shortage of transportation or communication facilities, pandemic, disruption of telecommunication networks, terrorism or war. Each Party shall, with the cooperation of the other, exercise all reasonable efforts to mitigate the extent of a delay or failure resulting from a force majeure event and the adverse consequences thereof. Moody's reasonable efforts shall include (i) performance of required work or provision of Services or related services by alternative personnel or subcontractors, as permitted by this Agreement; (ii) contracting for services, equipment, materials or supplies from carriers and suppliers not affected (or less affected) by the cause of a delay or failure, subject to Client's approval; and (iii) cooperating with Client's efforts to secure necessary replacement service from other carriers. Upon the occurrence of a force majeure event, Moody's shall implement promptly, its business continuity and disaster recovery plans. Moody's shall give immediate notice to Client of any event Moody's considers is a force majeure event under this Section, and confirm when the event has ceased.

11.9 Assignment. The Parties shall not assign this Agreement or any of its rights or duties under this Agreement without the prior written consent of the other party; provided however, that a Party may assign its rights and obligations hereunder in the event of a change of Control or sale of all or substantially all of its assets related to this Agreement, whether by merger, reorganization, operation of law, or otherwise; and provided further, that Client shall not assign this Agreement to any entity that is a competitor of Moody's or its Affiliates. If any such permitted assignment by Client would cause Client to exceed a Usage Parameter, such assignment shall be contingent upon the purchase by Client of additional subscriptions or usage rights. Any permitted assignee of Client shall agree in writing to be bound by the terms and conditions of this Agreement. Subject to the foregoing, this Agreement shall be binding upon and shall inure to the benefit of both Parties, their successors, administrators, heirs, and assigns.

11.10 Governing Law and Jurisdiction. The law governing any action arising out of or relating to this Agreement and any Order Form, and the courts having exclusive jurisdiction over any such action depends on the location of the Moody's contracting entity that entered into the Order Form, as set out in the table below, without reference to their conflict of law principles and without regard to the U.N. Convention on Contracts for the International Sale of Goods. Each party hereby consents to the exclusive jurisdiction and venue of the applicable courts below and agree that any such action shall be maintained in the same jurisdiction, and waives any defense of forum non-conveniens or other similar defense objecting to the maintenance of the action in such courts and/or jurisdiction.

If the Moody's contracting entity that entered into the Order Form is located in:	Governing law is:	Courts with exclusive jurisdiction are:
Any country other than the ones listed below	State of New York	State and federal courts located in the Borough of Manhattan in New York, New York
United Kingdom, Switzerland or any member state of the European Union, or in the United Arab Emirates	England and Wales	English courts
Canada	Province of Ontario	Courts of the Province of Ontario located in Toronto, Ontario
Australia, People's Republic of China, Hong Kong, Japan, Korea or Singapore	Singapore	Singapore courts

In the event this Agreement and any Order Form is governed by the laws of England and Wales, the Parties further agree that no term in this Agreement is enforceable, under the Contracts (Rights of Third Parties) Act 1999 or otherwise, by a person who is not a party to this Agreement, save that the Moody's Indemnified Parties and the Client Indemnified Parties may directly enforce and benefit from the terms of the "Indemnification" section, and any Licensor may directly enforce and benefit from the terms of the "Third Party Data" section.

11.11 Dispute Resolution. The Parties agree they shall attempt to resolve any dispute between themselves relating to this Agreement in accordance with this Section. Each Party shall notify the other Party in writing of the nature of the dispute with all reasonable details of alleged deficient performance by the other Party. Moody's client relationship manager and Client's procurement contact (or other identified contact) under the Order Form shall initially meet to review performance and resolve any dispute. If these representatives are unable to resolve the dispute within ten (10) days of the first meeting request, they will escalate to an appropriate representative of senior management. If the appropriate representatives of senior management are unable to resolve the dispute, either Party may take further action as anticipated by Section 11.10 (*Governing Law and Jurisdiction*) above. Both Parties shall continue performing their obligations during the course of a dispute.

11.12 Notices. All notices under this Agreement shall be written in the English language and shall be given by the Parties as follows in order to be given effect hereunder: (a) all notices given or made pursuant to this Agreement relating to a claim of breach of this Agreement, indemnification obligations or a pending or threatened legal proceeding, shall be delivered by prepaid express delivery service (e.g., FedEx, UPS, DHL) with a required copy delivered by electronic mail in order to be effective; and (b) all other notices given or made pursuant to this Agreement shall be delivered by electronic mail, in either case to the physical and email addresses for the Parties as set out below. In the case of Moody's, notices shall be sent to "General Counsel, Moody's Analytics, 7 World Trade Center, 250 Greenwich Street, New York, NY 10007, USA", and sent electronically to malegal@moodys.com. In the case of Client, notices shall be sent to the physical and email addresses specified for Client on the relevant Order Form. For notices required to be given under paragraph (a), such notice shall be deemed effective on the earlier of: (i) the date of physical delivery, as evidenced by the delivery confirmation provided by the express delivery service; and (ii) upon the receipt by the sending party of written confirmation by the receiving party; provided however, that an automated email confirmation of delivery or read receipt will not constitute such confirmation. For notices given under paragraph (b), such notice shall be deemed effective when sent (as recorded on the device from which the sender sent the electronic mail), unless the sender receives a machine-generated message that delivery has failed.

11.13 Complete Agreement / Survival. This Agreement and any Order Form constitute the complete and exclusive understanding and agreement of Moody's and Client relating to the Products and Services, and supersedes all prior or contemporaneous understandings, agreements and communications with respect to the subject matter hereof. The sections titled "Restrictions on Access and Use", "Intellectual Property and Proprietary Rights", "Effect of Termination", "Payment of Fees", "Exclusions", "No Other Warranties", "Disclaimer", "Indemnification", "Exclusions and Limitations of Liability", "Confidentiality", and "General Terms" shall survive the expiration or termination of this Agreement, and the section titled "Information Security Warranties" will survive for so long as Moody's retains possession of Business Data.

11.14 Counterparts / Execution. This Agreement and any Order Form may be executed in counterparts, which together shall constitute a single instrument, and may also be executed by electronic signature, and the Parties agree that facsimile, digitally scanned or other electronic copies of signatures shall be valid and binding as originals.

11.15 Privacy – Contact Data. Each Party may Process, as a Controller within the meaning of the GDPR, for the purpose of managing the business relationship between the Parties (e.g. communicating, invoicing, accounting, marketing), certain personal data (in particular identity data, e.g. title, first and last name, email address, telephone number, position) related to the other Party's and its Affiliates' directors, officers, employees and suppliers (including contractors and subcontractors) and any other person involved in the business relationship between the Parties. These Personal Data may be retained for the duration of the business relationship, unless a longer retention period is permitted or required by applicable laws and regulations (including statutes of limitation). Each Party may transfer the Personal Data to its Affiliates and suppliers to the extent reasonably required for the abovementioned purpose. Each Party agrees not to Process the Personal Data for any other purpose. The Parties shall cooperate with each other so that the Data Subjects may exercise their rights under the Data Protection Legislation and so that the Data Subjects and competent supervisory authorities be informed of Personal Data breaches where applicable. In this context, and within the course of providing Moody's Products and Services, Moody's may process the names, business contact details, usernames and passwords of (i) Client's employees as contact points for contract negotiation and signature. This personal data is processed for a number of business purposes, including account management, invoicing and collection of fees.

11.16 Press Release and Reference. Neither party shall issue any press release or public statements concerning this Agreement without the other's written consent.

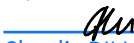
11.17 Conflicts of interest. Each Party shall maintain appropriate procedures for identifying and managing conflicts of interest with respect to Moody's provision of the Products and Services and Client's receipt of the Products and Services.

11.18 Order of Precedence. In the event of any irreconcilable conflict between this Agreement and any Order Form, the Order Form will control to the extent of such conflict, solely with respect to the applicable Products or Services.

11.19 Language of Agreement. Notwithstanding any translation of this Agreement, the English language will exclusively control the interpretation of this Agreement and all other writings between the Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement through their duly authorized officers as of the Effective Date.

SIGNED BY:
SCOR GIE Informatique

Signature: 
Claudia DILL (Jun 30, 2025 21:37 GMT+2)

Print Name: Claudia DILL

Title: _____

Date: 30/06/2025

ACCEPTED BY:
Moody's Analytics UK Limited

Signature: 

Print Name: Daniel Flemington

Title: Managing Director

Date: 30/06/2025

Attachments:

- Schedule 1 – Professional Services Schedule
- Schedule 2 – Information Security Standards
- Schedule 3 – Digital Operational Resilience
- Schedule 4 – Code of Business Conduct

SCHEDULE 1 – Professional Services

For purposes of this Schedule:

(i) **“Moody's Materials”** means Moody's may use proprietary works of authorship, whether pre-existing or created during such provision of the Professional Services or otherwise, including models and modeling techniques, data, scores, indices, computer programs, methodologies, scorecards, templates, flowcharts, architecture designs, tools, specifications, drawings, sketches, models, samples, records and documentation, as well as trademarks, service marks, ideas, concepts, know-how, techniques, knowledge or data, and any derivatives thereof, which have been originated, developed or purchased by a Moody's Affiliate or a third party retained by a Moody's Affiliate, collectively and any improvements thereto;

(ii) **“Professional Services”** means any implementation, training, onboarding or other related work performed by Moody's to Client pursuant to the Order Form.

1. PURPOSE OF ENGAGEMENT.

1.1 In the Order Form Client and Moody's may mutually agree upon: Professional Services to be provided by Moody's, a description of any materials and other Deliverables to be provided by Moody's, an estimated work schedule, a payment schedule, additional terms and conditions (if any) applicable to a particular engagement, and such other details as the parties deem appropriate. Moody's will perform Professional Services for Client as set forth in the Order Form, subject to the terms and conditions of the Agreement.

Any work schedules set forth in the Order Form are the estimated beginning and completion dates for the tasks and activities to be performed, and may be revised by the parties during the term of the Order Form. Moody's will use reasonable efforts to meet such dates, subject to Client's ongoing compliance with its obligations under the Order Form.

1.2 Each party will designate a representative under the Order Form who will be the principal point of contact between the parties for all matters relating to the Professional Services (the “Project Manager”). The Order Form will contain an initial designation of the Project Manager for each party, and either party may designate a new Project Manager by written notice to the other party.

1.3 Each party may request changes to the Professional Services. If a party requests any such change, Moody's will notify Client if Moody's believes that an adjustment is required to the fees to be paid to Moody's under the Order Form, or to the applicable work schedule. The parties will then negotiate in good faith a reasonable and equitable modification of the Order Form, and execute a change order containing such provisions. Moody's will continue to perform pursuant to the existing Order Form, and neither party shall be bound by any requested change, until such change has been accepted in writing by both parties.

1.4 Client will cooperate with Moody's in the performance of the Professional Services, including providing Moody's with reasonable facilities and complete, accurate and timely access to data, information and personnel of Client, and Client acknowledges and agrees that Moody's performance is dependent upon the timely and effective satisfaction of Client's responsibilities hereunder, and timely decisions and approvals of Client's work in connection with the Professional Services. In the event of any delays caused by Client, all milestone dates will be accordingly adjusted, and any additional Professional Services required will be billed at Moody's standard rates on a time and materials basis.

1.5 Except as specified in the Order Form, Client agrees to reimburse Moody's for travel (including but not limited to air and ground transportation, lodging, and meals), phone, postage, and other out-of-pocket business expenses directly incurred in connection with providing the Professional Services.

2. OWNERSHIP OF DELIVERABLES.

2.1 Client will own all written reports, analyses, presentations, documents, papers and other tangible documents delivered by Moody's to Client in the performance of the Professional Services, exclusive of any intellectual property embodied therein. Client will also own the intellectual property in any Deliverables supplied by Moody's that are specifically identified in the Order Form as “Client Property” to be owned by Client (excluding any Moody's Materials). Notwithstanding the foregoing, Client agrees that the Deliverables are for Client's own internal use and information, and Client must not distribute, disclose, sell or license any Deliverable to any third party. Moody's reserves all other rights in the Deliverables, and shall retain ownership of all intellectual property embodied in all Deliverables other than Client Property.

2.2 Client shall obtain no rights in the Moody's Materials other than those limited, express license rights granted under the Agreement. To the extent that any Moody's Materials are embodied in or incorporated into the Deliverables, and effective upon full and final payment by Client for the relevant Professional Services or Deliverables as required by the Order Form, Moody's hereby grants to Client, subject to the terms and conditions of the Agreement, a royalty-free, non-exclusive, nontransferable, non-sublicensable license

to use such Moody's Materials (in object code only, as applicable) internally, solely as necessary for Client's internal use of the Deliverables. Except as otherwise set forth in the Order Form, the term of such license is perpetual, unless the Deliverables consist of software customizations to be used in connection with other Products provided to Client by Moody's on a subscription or limited term basis, in which case the term of such license for such Moody's Materials will be for the same limited term or subscription period as such other Products. Client must not (and must not permit, enable or facilitate any subsidiary, Affiliate or other third party to) disclose, provide access to, sublicense, disassemble, decompile, reverse engineer, modify or create derivative works of any Moody's Materials, or transfer any Moody's Materials to any subsidiary, Affiliate or other third party, in each case without the prior express written consent of Moody's.

2.3 Client acknowledges that Moody's provides consulting and development services to other clients and agrees that nothing in the Agreement will be deemed or construed to restrict or limit Moody's from conducting such business or developing for itself or others any materials that are competitive with Client or Client's products or services. In particular: (a) Moody's will have the right to retain a copy of each of the Deliverables for its records; (b) as part of Moody's provision of the Professional Services, Moody's may use Moody's Materials; and (c) any and all of the Moody's Materials and Moody's administrative communications, records, files and working papers relating to the Professional Services will remain the sole and exclusive property of Moody's.

3. ACCEPTANCE

3.1 Deliverables provided by Moody's will be reviewed by Client. Moody's and Client shall determine in the scoping exchanges when ordering Professional Services pursuant to the applicable Order Form which Deliverables may be subject to further acceptance testing based on mutually agreed acceptance criteria.

3.2 Where acceptance testing applies:

3.2.1 One or more test phases may be implemented by the parties. The purpose of test phases is to determine any defects that may prevent acceptance of the Deliverable.

3.2.2 Client shall expressly reject, conditionally accept or accept the Deliverable within the time period set forth by the Parties in defining the scope of the Professional Services. If Client does not expressly reject or conditionally accept the Deliverable within ninety (90) days of submission, Moody's may treat the Deliverable as accepted.

3.2.3 Moody's acknowledges that a Deliverable will not be accepted if major defects have been identified.

3.2.4 Moody's will correct major defects reported in acceptance testing at no additional cost to Client.

3.2.5 A conditional acceptance will specify which defects (major or minor) must be rectified within a specified time period, otherwise the Deliverable will be treated as rejected.

4. PERSONNEL

4.1 Each Party shall remain fully responsible for its own personnel.

4.2 Moody's personnel involved in the performance of the Professional Services are under the management direction and control of Moody's, including when working at Client premises. Moody's is solely responsible for recruitment, remuneration, employment and training of its personnel. Moody's fully complies with all labour laws applying in respect of its personnel (for example in respect of social security contributions). Moody's will manage and monitor personnel-related issues in respect of its personnel such as working hours, travel and health and safety.

4.4 Moody's acknowledges that, except for security reasons and in case of emergency, Client will not directly instruct Moody's personnel. Requests or instructions in relation to the performance of the Professional Services will by default be sent to Moody's Project Manager.

4.5 Where Moody's personnel must access Client premises for the performance of Professional Services, Moody's shall provide names and contact details of the relevant personnel at least forty-eight (48) hours in advance of service commencement. Moody's shall in addition indicate whether the same personnel have been engaged on any Professional Services for Client in the preceding two (2) year period, together with outline information on the nature of those Professional Services.

4.6 Moody's conducts appropriate pre-employment screening consistent with its frequent engagement with regulated financial institution customers. To the extent permitted by applicable law, Moody's will provide details of pre-employment screening checks conducted at Client's written request.

4.7 When performing Professional Services at Client's premises, Moody's agrees that its personnel will adhere to reasonable directions on applicable work schedules, health and safety rules as communicated by Client to Moody's. Moody's acknowledges that Client may

require appropriate evidence that personnel attending Client's premises are Moody's personnel (or an agreed subcontractor). Moody's further acknowledges that Client's security policies require that Moody's personnel display an identification badge at Client's premises.

4.8 Moody's accepts that applicable local laws may impact the deployment of Moody's personnel at Client premises and undertakes to comply with the those applicable laws to the extent they are applicable to the Moody's personnel.

5. SERVICE DELIVERY STANDARDS

5.1 Moody's agrees that it will provide the Professional Services in a professional manner, with reasonable skill and care, and in accordance with generally accepted industry practice, by individuals of suitable competency, training and skill, in accordance with the terms of the Agreement.

5.2 Moody's will promptly replace personnel assigned to the performance of Professional Services in the event of departure or long-term absence (e.g. illness, resignation, leave). Moody's will, where commercially reasonable, provide at least thirty (30) days advance prior written notice if such a replacement is required. In the event that Client indicates it is unable to work with a particular member of Moody's personnel for a material and substantiated reason (e.g. lack of technical skills or inappropriate behaviour), Moody's will promptly replace that member of Moody's personnel.

5.3 To the extent that Moody's must operate in Client's IT environment to deliver Professional Services, Moody's shall carry out those Professional Services consistently with Client's policies and guidelines for that IT environment as notified by Client to Moody's, in particular the 'SCOR Group IT Security Policy for Third Parties' and the 'SCOR Group Guidelines on IT Acceptable Use'.

5.4 Where specified in an Order Form, Moody's will provide reasonable and appropriate support with knowledge transfer during the performance of Professional Services.

6. MISCELLANEOUS.

6.1 Moody's will not use any Moody's Affiliate personnel involved in the assignment of credit ratings in Moody's performance pursuant to the Agreement. Moody's will comply with the separation policies of its parent corporation, Moody's Corporation, and its subsidiaries, to avoid disclosing any Confidential Information of Client received by Moody's in performing the Professional Services to any personnel of any Moody's Affiliate involved in the assignment of credit ratings.

6.2 Moody's will not assist Client in structuring any structured or corporate debt obligations, collateralized debt obligations, fixed income funds/portfolios, loans or other financial instruments (each a "Security" and together, "Securities"). Client acknowledges and agrees that Moody's is not acting as a financial advisor or providing investment advice in providing the Professional Services, and neither the Professional Services nor any Deliverables are a recommendation to buy, hold or sell any Securities.

6.3 Neither party will, during the term of the Order Form and for one (1) year after its termination, hire, solicit or retain (whether as an employee, independent contractor or otherwise) any of the other party's personnel who have had direct involvement with the Professional Services, without the other party's express prior written consent. Any hiring of personnel who respond to general solicitations, such as a newspaper ad or public website, is not prohibited by this Section 3.3.

SCHEDULE 2 – Information Security Standards Schedule**1. INFORMATION SECURITY PROGRAM**

1.1 Moody's has established and maintains a comprehensive written information security program that implements reasonable administrative, technical and physical safeguards intended to (i) protect Business Data from unauthorized access, disclosure, use, modification, loss or destruction; (ii) protect against any anticipated threats to the confidentiality, security or availability or integrity of the Business Data; and (iii) properly and securely dispose of the Business Data in accordance with industry standards. Moody's may modify its information security program from time to time, provided that such modifications, either individually or in the aggregate, will not materially reduce the overall level of protection for Business Data. Moody's maintains its information security program and applicable safeguards at all Moody's sites at which an information system that stores or otherwise processes Business Data is located. As used herein, "Business Data" means electronic information submitted by Authorized Users to or through the Products for storage or processing, and all derivatives of such data.

1.2 Moody's physical security measures will include securing business facilities and data centers, and all paper files, servers, back-up systems and computing equipment contained therein. Moody's will maintain commercially reasonable physical security controls at all facilities at which an information system that stores, accesses or otherwise processes Business Data is located. Moody's appropriately restricts physical access to such facilities and information systems. Physical access controls have been implemented for all data centers where Business Data is stored, including 24x7 onsite staff, biometric scanning, and security camera monitoring on entry doors. Data center physical security is audited by an independent firm.

1.3 Moody's information security program will require the following: (i) segregation of Business Data from information of Moody's or its other customers so that Business Data is not commingled with any other types of information, (ii) encryption, using industry standard encryption tools, of all records and files containing Business Data that Moody's (A) transmits or sends wirelessly or across public networks; (B) stores on laptops or removable storage media; (C) where technically feasible, stores on portable devices; and (D) stores on any device that is transported outside of the physical or logical controls of Moody's; (iii) safeguarding of the security and confidentiality of all encryption keys associated with encrypted Business Data; (iv) implementation of processes and procedures intended to authenticate, monitor and report on access to and use of Business Data; (v) processes, procedures and technology intended to maintain network security and to detect a breach or other failure of such security measures, such processes and procedures to include, among other things, (A) access controls, (B) firewalls; (C) audit logs and monitoring reports that are designed to identify unauthorized activities, detect intrusions, reconstruct events and promote accountability by any and all persons who access or use Business Data, (D) restricted access privileges, and (E) a written incident response plan; (vi) ensuring its information systems and associated technologies are monitored by authorized personnel to detect intrusions and unauthorized activities; and (vii) multi-factor authentication for all individuals accessing Moody's internal networks from an external network.

1.4 If Moody's is using or supplying devices or other technology assets in the performance of Products and Services to Client, Moody's must, where applicable, have documented standards and procedures to ensure such are appropriately secured prior to deployment, including complying with the following requirements: (i) devices must be running supported firmware provided by the applicable manufacturer; (ii) access to device firmware or BIOS must be protected by password where available; (iii) network ports, services and protocols that are not used or are prohibited by policy must be disabled; (iv) applicable security and vulnerability management software must be installed, including, but not limited to, anti-virus, firewall, log collection, intrusion prevention and software patching; (v) logging of security events is enabled and at a minimum, logging must capture access policy changes, software installation/updates, failed logins and the creation of accounts with elevated privileges; security event logs must be retained for at least ninety (90) days; (vi) default passwords for built-in administrative accounts must be changed and must comply with strong password requirements, and built-in administrative accounts should be renamed where practical; and (vii) guest and anonymous account access must be disabled unless required for device operation.

2. **Asset Management.** Moody's has implemented policies and procedures to identify, classify and manage information assets, including both software and hardware assets, and their designated owner. Moody's performs regular asset inventories. Moody's has processes to classify data and identify sensitive, valuable and critical data that Moody's stores, processes or transmits.

3. **Personnel Security.** Moody's has clearly defined roles and responsibilities for employees, including with respect to information security. In accordance with applicable laws to Moody's and its provision of its Products and Services to its customers, Moody's conducts appropriate and thorough pre-employment screening to protect against security-related or other potential risks presented by personnel. Moody's will only allow persons to have access to Business Data who have undertaken background security checks of a type and scope that are normal and customary for the financial services industry and comply with applicable laws. Such background checks shall include address and employment history verification, the right to work in the relevant jurisdiction, screening against databases of individuals subject to economic sanctions and, if permitted by applicable laws, criminal records checks. Moody's will exclude any of its personnel from accessing the Business Data (i) whose background check reveals they have been convicted of any criminal offense involving dishonesty or breach of trust, including money laundering or any criminal offense concerning the illegal

manufacture, sale or distribution of or trafficking in controlled substances, (ii) who appear on any sanctions database or (iii) who are not authorized to work in the relevant jurisdiction.

3.1 **Confidentiality Obligation.** Moody's imposes confidentiality obligations on its personnel who will be provided access to, or will otherwise process, Business Data, including the obligation to protect Business Data in accordance with the requirements of this Schedule (including during the term of their employment or engagement and thereafter).

3.2 **Information Security Training and Awareness.** Moody's implements a security awareness program to train personnel about their security obligations, including in relation to information classification and handling, acceptable use, physical security controls, best practices, and security incident reporting, as well as training product personnel on secure application development.

3.3 **Disciplinary Actions.** Moody's has formal disciplinary processes that apply in the event that any personnel violate their confidentiality or other information security obligations in relation to Business Data.

4. **Software Vulnerability Management.** Moody's defines and maintains standards for patch management, and vulnerability management designed to ensure that software on any of Moody's assets is regularly updated to mitigate security gaps, including addressing the following: (i) periodic vulnerability scans on all Moody's systems that host, access or otherwise process Business Data; (ii) identification of software that will be updated; include all software components (i.e., client, server and database) where appropriate; (iii) identification of authorized source(s) for the software updates; and (iv) maintaining a process for authorizing and tracking software patching exceptions. The scope of the software vulnerability management program shall also cover security software (e.g., anti-virus and anti-malware), which shall be installed and enabled on each host that is capable of running such software and on gateways, and Moody's shall ensure that the scanning engine and signature or pattern files are kept current; and block access to known malicious domains.

5. **Application Security.** Moody's maintains a security software development program that includes the use of (i) industry best practices that are in compliance with OWASP principles and, conducts regular application security testing; and (ii) third-party penetration testing. Upon Client's request, Moody's will make available to Client up to once per year a copy of a penetration testing executive summary report, if Moody's has conducted penetration testing for the applicable services. Except as set forth in the Agreement, Moody's must support any production hardware or software used in connection with or which form part of the Products and Services, including updates to address known security flaws and vulnerabilities, in support of which, Moody's maintains internal timeframes for vulnerability remediation in accordance with Moody's internal policies.

6. **Change Management.** Moody's is responsible for implementing system change management procedures ensuring that any system modifications affecting the Products and Services are consistent with the Moody's information security program and other security requirements specified in this Schedule.

7. **Access Control.** Moody's maintains policies and procedures that define the requirements for access to information, including approvals, onboarding and off-boarding requirements, password requirements, segregation of duties, periodic user access recertification, and the logging/monitoring requirements and mechanisms.

7.1 Only authorized personnel can grant, modify or revoke access to an information system.

7.2 All personnel are assigned unique user IDs.

7.3 Access rights are implemented adhering to the "least privilege" approach.

7.4 Moody's implements commercially reasonable password management requirements, including in relation to password length, complexity, expiration, and reuse.

7.5 System access for terminated personnel is promptly removed.

8. **Control of Media.** When media are to be disposed of or reused, procedures have been implemented to prevent subsequent retrieval of any Business Data stored on them before they are withdrawn from the inventory. When media are to leave the premises at which the files are located as a result of maintenance operations, procedures have been implemented to prevent undue retrieval of Business Data stored on them.

9. **Third Party Risk Management.** Moody's maintains a Third Party Risk Management program that involves review of the information security practices and controls of subcontractors and, as necessary, required remediation and monitoring of each such subcontractor's control gaps.

10. **Incident Response.** Moody's maintains an Incident Response Plan that includes incident handling responsibilities and delegation of authority, and guidelines for forensics, evidence collection, post incident review, reporting, and testing. Moody's reviews

this plan at least annually considering organizational changes, past incidents, current and emerging threats and other factors. Moody's also performs tabletop exercises to test the teams and their processes, and to identify any gaps in the plan or associated response scenarios. Moody's will provide notice to Client no later than 72 hours after Moody's becomes aware of an incident of unauthorized access to Business Data. The notice shall contain the following: (i) a description of the incident, (ii) the type of information subject to the unauthorized access, and (iii) the measures taken by Moody's to protect Client from further unauthorized access.

11. **Audit.** Upon Client's request, Moody's will make available to Client up to once per year a copy of a third-party assessment, such as an SOC (System and Organization Controls) report or comparable report ("Third-Party Report"), if Moody's has obtained such a Third-Party Report for the applicable services.

12. **Business Continuity and Disaster Recovery.** Moody's shall maintain throughout the provision of Products and Services an appropriate disaster recovery and business continuity plan (the "BCP") in compliance with applicable laws and consistent with industry standards. Moody's reviews its BCP and risk assessment regularly. The BCP is tested and updated regularly to ensure that it is up to date and effective. Upon Client's written request, Moody's will furnish Client with an executive summary of the BCP, including operating procedures, integrity of service, test objectives and results of annual tests of the BCP. Moody's will use commercially reasonable efforts to modify the BCP as needed to comply with changes in legal or regulatory requirements and industry standard.

SCHEDULE 3 – Digital Operational Resilience

This Digital Operational Resilience Schedule ("Schedule") is made part of, and is hereby incorporated by reference into, the Order Form between the parties. All capitalized terms not otherwise defined herein shall have the meanings ascribed to them in the Agreement. In the event of any conflict between the Order Form and this Schedule, this Schedule shall govern.

1. TERMINATION.

In addition to Section 5.2 of the Agreement, Client may terminate the Order Form upon written notice to Moody's in the following circumstances:

- (a) Moody's has significantly breached applicable laws or regulations and been unable to rectify within thirty (30) days of a written notice from Client specifying the breach.
- (b) During its monitoring of its ICT third party risks, Client has identified circumstances that are deemed capable of altering the performance of the functions provided through this Agreement, including material changes that affect the arrangement or the situation of Moody's.
- (c) in case of Moody's evidenced weaknesses pertaining to its overall ICT risk management and in particular in the way it ensures the availability, authenticity, integrity and, confidentiality, of data, whether personal or otherwise sensitive data, or non-personal data.
- (d) A regulatory authority with jurisdiction over Client indicates that it is no longer able to effectively supervise Client as a result of the conditions of, or circumstances related to, the respective contractual arrangement.

2. SECURITY AWARENESS AND DIGITAL OPERATIONAL RESILIENCE TRAINING.

Moody's conducts mandatory new hire and annual security awareness training for all personnel and maintains an ongoing anti-phishing program. Personnel engaged in the development of Moody's Products receive secure application development training. Moody's acknowledges that applicable laws (for example the Digital Operational Resilience Act Regulation EU 2022/2554, Article 30(2)(i)) may provide an option for Moody's to participate in Client security awareness programmes and digital operational resilience training. To this end, Client shall offer programs to raise awareness of ICT security and training courses on digital operational resilience (collectively, "ICT Qualifications"). At the request of Client and at Client's cost, Moody's shall instruct personnel deployed by it for the contractual provision of Services to participate in an ICT Qualification. Moody's may only reject a request if it can demonstrate that the personnel deployed have participated in training with comparable content in the past twelve (12) months. The Parties shall agree on details of the scope and implementation of the ICT Qualification within three (3) weeks of the request.

SCHEDULE 4 –Code of Business Conduct

MOODY'S

LIVING OUR VALUES

Code of Business Conduct





Table of contents

FROM ROB FAUBER

OUR VALUES

OUR CODE

An introduction to our Code	5
Our responsibilities	6
Seeking help and reporting concerns	7
No retaliation	8
Code administration	9

OUR TEAM

Fair employment practices	11
Personal relationships and nepotism	14
Health and safety	15
Data privacy	17

OUR RELATIONSHIPS

Fair dealing	19
Antitrust and competition	19
Engagement of consultants and contractors	22

OUR COMPANY

Accurate business records	24
Deception and fraud	25
Conflicts of interest	26
Accepting gifts, entertainment and other offers	28
Confidential information	29
Intellectual property	32
Use of Company resources	33
Use of personal devices and social media	35

OUR RESPONSIBILITY

Insider trading and market abuse	37
Anti-bribery and anti-corruption	39
Political activities	40
International business operations	41
Anti-money laundering	43
Government investigations and litigations	44

OUR RESOURCES

OUR POLICIES

From Rob Fauber

At Moody's, we unite the brightest minds to turn today's risks into tomorrow's opportunities. As risks become more complex and interrelated, organizations around the world turn to us for bold, clear and perceptive analysis and solutions. To do that effectively, we need to live our values and show that trust and integrity are at the heart of every decision and action we take.

Our people are the foundation of our success, and we invest in helping everyone reach their highest potential. We all have an obligation to uphold trust through integrity and reinforce the Company's long-held reputation for legal and ethical conduct. Ultimately, each of us is accountable for our actions, and we must hold ourselves to exacting standards. Moody's Code of Business Conduct shows us the way and reaffirms our shared commitment to ethical behavior.

Think of the Code as a guide to your daily activities as a Moody's employee. It clearly defines our expectations for ethical conduct and helps you act in a manner that is consistent with our policies and values. It is your responsibility to read the Code carefully, refer to it often and speak up about any questions or concerns you may have. No Code can answer every question or provide guidance on every subject. If you have a question that the Code does not directly address, there are a variety of resources provided in the Code for you to find help.

At Moody's, we play the long game. In 1909, our founder John Moody had a vision of widening access to information. We are still inspired by this today, and by embodying the Code and living our values, we can continue to build on all we have achieved and look forward to the future with confidence. Thank you for all you do for Moody's and our customers.

ROB FAUBER
President & CEO
Moody's Corporation



Our values

Moody's long-standing reputation as an ethical and responsible company was built one action, one decision at a time. We enhance our reputation by Living Our Values in everything we do.



Invest in every relationship

We create a world-class experience for our people and our customers.



Lead with curiosity

Curiosity keeps us ahead of the curve.



Champion diverse perspectives

We include diverse voices to get to smarter decisions.



Turn inputs into actions

We deliver clear results.



Uphold trust through integrity

Trust is integral to who we are.

Our Code

Moody's expects each of us – employees at all levels and the Company's directors – to maintain the highest standards of integrity and ethics every day, in everything we do.

An introduction to our Code	5	No retaliation	8
Our responsibilities	6	Code administration	9
Seeking help and reporting concerns	7		



An introduction to our Code

Our Code is the guide we follow each day to conduct ourselves and our business with integrity.

AN OVERVIEW

Trust is integral to who we are, and we opt to do what’s right over what’s easy. Each of us has a duty – to ourselves, our colleagues, our stakeholders and everyone we do business with – to uphold and enhance the Company’s long-held reputation for legal and ethical conduct.

This Code of Business Conduct (the “Code”) is designed to help you understand how to apply these principles and maintain the highest standards of honesty, integrity, good judgment and professionalism in your daily work. As a Company, Moody’s appreciates and expects everyone’s full adherence to the Code.

SCOPE OF CODE

The Code describes a variety of laws and policies that may affect your work and the legal and ethical issues that may arise in your job. In some cases, you may find that Moody’s expectations go beyond what the law requires or permits. If you are ever unsure of the right course of action or have a question about a particular situation, talk to either:

- Your manager;
- Another senior manager;
- A member of the People Team;
- Moody’s Compliance department; or
- Moody’s Legal department.

It is always better to reach out and seek advice sooner rather than later – waiting may only make the issue harder to address.



Key terms

Throughout the Code, you will see these terms used:

“MOODY’S” and “THE COMPANY” – Refers to Moody’s Corporation and its wholly-owned subsidiaries.

“MOODY’S RATINGS” – Refers to all Moody’s entities that issue credit ratings under the “Moody’s Ratings” brand name.

“MA” – Refers to Moody’s Analytics.

“EMPLOYEE” – Refers to employees and directors of Moody’s Corporation and all employees of our wholly-owned subsidiaries, including part-time and limited duration employees.

“RATING PERSONNEL” – Refers to employees in Moody’s Ratings who participate in (i) determining or monitoring a Rating or (ii) the development or approval of procedures or methodologies used for determining a Rating.

Moody’s has a variety of policies in place concerning legal and ethical behavior. The Code is not meant to override those policies, but to summarize them for you and explain our expectations. That is why it is important for all employees and directors to review and understand the Code along with our policies, all of which can be found on Moody’s intranet. Be aware, the Code may be revised from time to time, but the most recent version will always be available on Moody’s intranet.

Moody’s conducts business around the world, but it is impossible for one document to cover all legal requirements of each jurisdiction in which we operate. Because we are a U.S. corporation, we give special attention to certain U.S. legal requirements.

WHO MUST FOLLOW THE CODE?

This Code applies to the directors of Moody’s Corporation and all employees of Moody’s wholly-owned subsidiaries worldwide, including part-time and limited duration employees. Moody’s majority-controlled subsidiaries have adopted substantially similar Codes and policies in consultation with Moody’s Legal and Compliance departments.

No matter your role at Moody’s, you are expected to review and understand the Code and all policies that apply to you and your activities. Remember, we will not tolerate any business transaction or other activity that violates the Code or our policies.



Important

- **This Code does not constitute an employment contract or an assurance of continued employment. It also does not create any obligations to or rights for any employee, director, customer, supplier, competitor, shareholder or any other person or entity.**
- **Your rights as an employee and our rights as an employer may differ depending on where you work, the rules of your employing unit, and any employment contract you may have.**
- **In the United States and certain other countries, employment by the Company is employment at will (unless otherwise agreed upon in writing).**
- **Employment at will means that you or the Company may terminate your employment at any time, for any reason or for no reason at all, but not for an illegal reason.**
- **If local laws and requirements conflict with the Code, that jurisdiction’s laws apply to employees based in that jurisdiction.**
- **If anything in the Code conflicts with your written employment contract, the provisions in your contract prevail.**
- **Should Moody’s adopt new policies or revise policies to make them more restrictive than this Code, those new provisions will prevail.**



Our responsibilities

As members of the Moody's team, we are dedicated to our Company's success and committed to fulfilling our shared responsibilities.

EMPLOYEE RESPONSIBILITIES

Observe ethical business standards. Uphold trust through integrity and proactively monitor for, escalate and address any ethical challenges in our work. You must strive to maintain the highest standards of personal ethics and integrity in every action you take on Moody's behalf and in your personal affairs. At a minimum, this means both complying with the principles and policies set out in this Code and upholding Moody's core values.

Comply with applicable laws. First and foremost, you have a duty to always comply with all laws and regulations that apply to our business. Never take any action on behalf of Moody's, its subsidiaries or yourself that violates any applicable law or regulation. Upholding the law is not only a good business practice, it also helps prevent the consequences of violations, such as fines, jail terms, expensive lawsuits, disciplinary action and/or termination of your employment.

Speak up or seek advice. All Employees should raise issues or concerns as they arise. You can discuss issues with your own manager or another manager, or you can reach out to the [People Team](#), the [Compliance department](#) or the [Legal department](#). And if you want to report something anonymously, you can always use the [Integrity Hotline](#).

ADDITIONAL MANAGER RESPONSIBILITIES

Lead by example, uphold trust through integrity, and act ethically at all times. As managers, we expect you to reinforce the importance of ethical behavior with your teams and make sure those who report to you understand what Moody's expects. Trust is integral to who we are. Together we build on our 115-year legacy by doing the right thing, always, because it gets us to the best outcome for all.

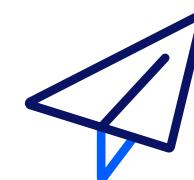
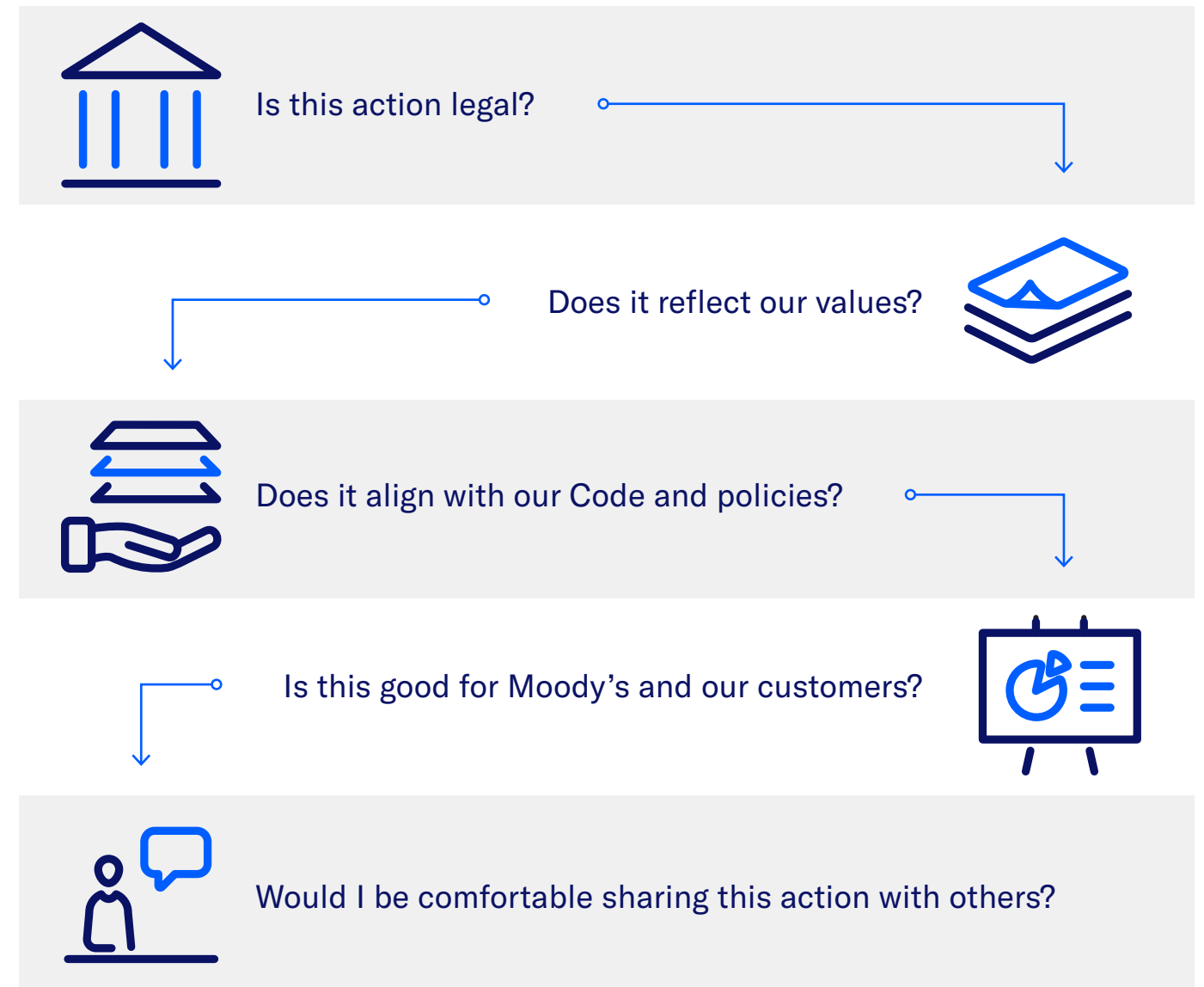
Escalate issues when they arise. We encourage Employees to discuss concerns and escalate concerns to managers. As a manager, you must maintain open lines of communication and guide others to find help when they need it, and you must escalate matters as appropriate. If you are unsure how to escalate an issue, contact the People Team, the Compliance department or the Legal department for guidance.

Watch for discriminatory, harassing or retaliatory conduct. If you see or suspect discriminatory, harassing or retaliatory conduct, report it immediately to the People Team, the Compliance department or Legal department.

Managers who do not appropriately escalate concerns may be subject to investigation and/or disciplinary action, up to and including termination.

Make good decisions

The right course of action may not always be clear. The Code is the best place to find help, but when you are still unsure, ask yourself:



If you can say “**yes**” to each question, the action is probably acceptable. But if even one answer is “no” or “maybe,” stop and [ask for help](#).

Seeking help and reporting concerns

Moody's is committed to fostering and maintaining a culture in which everyone feels comfortable speaking up.

OPEN DOOR POLICY

At Moody's, we encourage and facilitate open conversations and collaboration and proactively monitor for any ethical challenges in our work so that we can address them. By doing so, we create a more productive, cohesive and enjoyable work environment. For that reason, we support open door communication and encourage you to attempt to resolve concerns, problems or issues involving your work environment by:

- Holding frank discussions with your manager or other senior managers;
- Providing feedback during your performance review; and/or
- Participating in the Business Engagement Survey.

If you need additional guidance, you may also reach out to:

- The [People Team](#)
- The [Compliance department](#)
- The [Legal department](#)

When you approach your manager, you can expect:

- Your manager will make time to discuss workplace problems or concerns.
- You will have a safe environment to talk, free of distractions.
- You will not be subjected to retaliation.

Are open door conversations confidential?

We recognize the importance of maintaining confidentiality when you share concerns, but in some cases, it may not be possible, especially if it would impede an investigation or violate the law. Details about reported concerns will be shared only on a need-to-know basis, or as required by law or our policies.

REPORTING POTENTIAL VIOLATIONS

We need your help to maintain our ethical standards. That means speaking up if you believe a Moody's Employee has violated local, state or federal law, the law of any foreign country, or our Code or policies. We strongly encourage you, no matter where you work, to report suspected misconduct to either:

- The [People Team](#)
- The [Compliance department](#)
- The [Legal department](#)
- The [Integrity Hotline](#)

While no one will face retaliation for making a good-faith report of suspected misconduct, improper or abusive reports may lead to disciplinary action, up to and including termination.



Reporting in the European Union (EU)

Because the laws and regulations in the EU differ from those in the United States, reporting rules also differ. For example:

- **Moody's does not require Employees in certain European countries to report all suspected misconduct due to the employment and data protection requirements in those countries.**
- **Moody's Ratings Employees in the EU must immediately report any conduct that the Employee considers may be illegal.**



Seeking help and reporting concerns

THE INTEGRITY HOTLINE

Moody's Integrity Hotline is available to all Moody's Employees worldwide, 24 hours a day, seven days a week, 365 days a year. Translation services are available in more than 75 languages, including the languages spoken in every country where Moody's has offices.

You can reach the Integrity Hotline either:



Online: moodys.ethicspoint.com



By phone: For the following locations, you may access the Integrity Hotline directly through these direct phone numbers:

United States: 1.866.330.MDYS
(1.866.330.6397)

Belgium: 0800 14 375

France: 0 800 99 23 64

Hong Kong: 800969419

India: 000 800 919 1504

Singapore: 8001207175

United Kingdom: 0800 102 6525

To call from other locations, see [Our Resources](#) or visit moodys.ethicspoint.com for dialing instructions.



If you are using a mobile phone, you can access a mobile version of the website using the QR code shown or by visiting moodysmobile.ethicspoint.com.

While you may report concerns anonymously, providing your name may expedite the time it takes Moody's to review and respond to your concern. All reports are treated confidentially to the extent reasonably possible.



Reporting accounting matters

Moody's is committed to complying with the special securities laws, rules, regulations, accounting standards and internal accounting controls that apply to us. If you have concerns about:

→ **Accounting**

→ **Internal accounting controls**

→ **Auditing matters**

You must report them promptly to the Internal Audit, Compliance or Legal departments or via the Integrity Hotline.

No retaliation

No one at Moody's should fear retaliation for letting us know their concerns.

Moody's respects the right of each Employee to report potential or suspected violations of laws or regulations, the Code or other Company policies in good faith or to provide information about a complaint. We will not tolerate retaliation against any Employee for engaging in these protected activities.

Retaliation is contrary to Moody's policy and potentially unlawful. While retaliation can take many forms, it may include:

- Adverse employment action against someone who makes a good-faith complaint or participates in or supports an investigation.
- Attempts to discourage a worker from coming forward to make or support a complaint.

If you believe you have experienced retaliation, immediately report your concerns to the [People Team](#), the [Compliance department](#), the [Legal department](#) or the [Integrity Hotline](#).

We take retaliation seriously

Anyone found to have retaliated against someone for making a good-faith report of a suspected violation of law, the Code or Company policies may face disciplinary action, up to and including termination.



Code administration

Our Code is more than a document we read on day one. It is the resource we turn to whenever we have an issue in our workplace.

Moody's periodically requires Employees to certify that they have reviewed the Code, understand it and agree to its terms. In addition, as part of the certification process, we also give you an opportunity to disclose any previously unreported activities or events that could violate the Code.

INTERPRETATION

Moody's General Counsel is responsible for interpreting and applying the Code to specific situations. If you have any questions about how the Code should be interpreted or applied, contact Moody's [Legal department](#).

INVESTIGATIONS OF SUSPECTED VIOLATIONS

Moody's will conduct a prompt, fair and impartial investigation of all reports of suspected violations of the Code as necessary, unless an investigation is prohibited by applicable law. Employees are required to fully and truthfully cooperate as needed in investigations. While investigations may vary from case to case, they generally include:

- Reviewing the allegations;
- Assessing whether any interim actions to protect the reporting party are necessary;
- Interviewing relevant parties;
- Obtaining and reviewing relevant documents; and
- Preparing a report.

Moody's will then make a determination based on all evidence collected. We will also maintain the confidentiality of the investigation to the extent reasonably possible and as permitted by law. Moody's will keep written documentation and associated documents in its records, in accordance with applicable law.



Important

You should never conduct your own preliminary investigations of issues or concerns. Investigations often involve complex legal issues, and acting on your own could compromise the investigation and adversely affect both you and the Company.

Once the investigation is complete, Moody's generally will notify the reporting person(s) and the subject(s) that the investigation is complete. Depending on data protection laws in certain jurisdictions, Moody's may be obligated to inform the subject of a complaint that the complaint was filed, and how to exercise their right to access and correct the information. The subject of the complaint will not be given the name of the reporting person unless required by local law.

If Moody's finds there has been a violation of law or the Code, we will take appropriate corrective and/or disciplinary action, up to and including termination, subject to applicable law. If we also find that a manager knew of inappropriate conduct and failed to report it, Moody's will take appropriate corrective and/or disciplinary action, up to and including termination, subject to applicable law.

ENFORCEMENT OF THE CODE

Moody's enforces the principles spelled out in this Code and our policies at all levels of the Company. We are committed to doing all we can to prevent violations and stop them as soon as possible once we discover them. Subject to applicable law and agreements, Employees who violate this Code or our policies and procedures may face disciplinary action, up to and including termination.

In some cases, we may monitor compliance with the Code and our policies through periodic audits, investigations or other reviews. We require anyone connected with these efforts to cooperate fully, provide honest and accurate information and respond to requests for certifications.

WAIVERS OF THE CODE

While some Company policies must be strictly followed, in other cases, exceptions may be possible. If you believe a waiver of any of the principles or policies of this Code is appropriate in a particular case, contact your manager first. If your manager agrees that a waiver is appropriate, you will need to obtain approval from the Legal department.

If you are a director or Moody's Executive Officer seeking a waiver of the Code, you must fully disclose all relevant facts and circumstances to the General Counsel and the Chairman of the Audit Committee of the Board of Directors. Any waiver for directors and Moody's Executive Officers must be approved by the Board as a whole and promptly disclosed, to the extent required by law.



Our team

At Moody's, we are a collaborative and diverse team. We strive to create an inclusive environment where everyone feels welcome to be who they are. Our goal is to approach every interaction with inclusivity, care and commitment to help everyone reach their highest potential. Core to our values is to respect and support each other and preserve the dignity of everyone with whom we work.



Fair employment practices	11	Health and safety	15
Personal relationships and nepotism	14	Data privacy	17

Fair employment practices

Moody's is committed to maintaining a work environment in which every person can thrive, knowing they are valued, respected and welcomed.

RESPECTFUL WORKPLACE

We require a work environment that respects and protects the dignity of the people who work for and with Moody's. Each Employee is expected to act with integrity, dignity and fairness in all dealings with the Company, our people, our customers, other stakeholders and the public at large. We also expect everyone to conduct Moody's business affairs in a professional manner. Regardless of an individual's personal status or level at Moody's, every individual employed by, associated with, or who comes into contact with Moody's, must be treated with respect. All of us have a responsibility not to take any action that might reasonably be expected to impair or compromise the integrity of our business operations, embarrass or humiliate others, or trivialize or disregard the contributions of others.

EQUAL OPPORTUNITY EMPLOYER

Moody's success has always depended largely on our people. Their varied perspectives, backgrounds and individual styles add value to our Company, and we believe each person's role is vital to our success. We also believe equal employment opportunity is essential to our continued success – it enables everyone to enjoy equal opportunities and the rewards that come with them.

At Moody's, we recruit, hire, employ, promote and compensate individuals based on job-related qualifications and abilities. Moody's also has a longstanding policy of providing a work environment that respects the dignity and worth of each individual and is free from all forms of employment discrimination, including harassment, based on characteristics protected by law.

What are protected characteristics?

They include personal traits such as:

- Race
- Color
- Sex or gender
- Age
- Religion or religious creed
- National origin
- Ancestry
- Citizenship
- Marital status
- Sexual orientation
- Gender identity or expression
- Genetic information
- Physical or mental disability
- Military or veteran status
- And/or any other characteristic protected by law

INCLUSION

Moody's recognizes the vital role that diverse perspectives play in driving our success and shaping our future. We believe that a workforce comprised of individuals with varied thoughts, backgrounds and experiences, creates an environment that makes our decisions smarter, our opinions stronger, our products more innovative and our workplace more welcoming. Our culture of inclusion and belonging is integral to our values, and we seek out other people's participation and opinion, regardless of their background or role.

DISCRIMINATION AND HARASSMENT ARE PROHIBITED

Discrimination and harassment, including sexual harassment and discriminatory harassment, violate many laws around the world, and will not be tolerated at Moody's. We prohibit discrimination against Employees as well as applicants for employment, interns (whether paid or unpaid), non-employees, customers, vendors and contractors providing services to Moody's in the workplace.



Fair employment practices

SEXUAL HARASSMENT

Sexual harassment includes harassment on the basis of sex, gender, sexual orientation, gender identity, gender expression, the status of being transgender or any other characteristic protected by applicable law.

What are some examples of sexual harassment?

- Threatening adverse employment action if sexual favors are refused
- Demands for sexual favors in exchange for favorable treatment
- Unwelcome comments, flirtations, propositions or advances
- Unwelcome physical contact such as pinching, patting, kissing, hugging or grabbing
- Whistling, leering, improper gestures or offensive remarks
- Sexual jokes or use of sexually explicit or offensive language
- Displaying sexually suggestive objects or pictures
- Sex stereotyping
- Sexual assault or battery, or an attempt to commit these acts

The above list is not intended to be all-inclusive.

Sexual harassment includes unwelcome sexual conduct, including sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature, or which is directed to an individual because of that individual's sex or gender, when:

- Submission to such conduct is either explicitly or implicitly made a term or condition of an individual's employment;
- Submission to or rejection of such conduct is used as the basis for employment decisions affecting the individual; and/or
- Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance, violating an individual's dignity, or creating an intimidating, hostile, or offensive working environment.

Sexual harassment is prohibited without regard to the sex of the individual being harassed, whether the individual engaged in harassment and the individual being harassed are of the same or different sexes, or whether the employee accepts or rejects the advance. Employees should be aware that, in addition to being contrary to Moody's policy, sexual harassment can violate the law and that Employees who engage in such conduct may be held personally liable pursuant to local laws.

OTHER TYPES OF DISCRIMINATORY HARASSMENT

Other discriminatory harassment is also prohibited. This may include verbal or physical conduct that disparages or shows hostility or aversion toward an individual because of a [protected characteristic](#) that:

- Has the purpose or effect of violating an individual's dignity, creating an intimidating, hostile, or offensive work environment; and/or
- Has the purpose or effect of unreasonably interfering with an individual's work performance.

Recognizing harassment



It includes

Conduct that is written, verbal or physical in nature, such as:

- Epithets or slurs
- Threats
- Intimidation
- Jokes or pranks

or

Any hostile act that is posted or circulated anywhere on Moody's premises or uses Company resources, such as email or the internet, to create, send, receive or store written, graphic or harassing material



It can be committed by

Employees or Non-employees, including:

- Superiors
- Subordinates
- Coworkers
- Independent contractors
- Contract workers
- Vendors
- Customers
- Visitors

(Whether an Employee or Non-employee commits harassment, Moody's will take appropriate action.)



It can occur

In the office

or

Outside the office (e.g., at offsite customer-related, Moody's-related or after-hours events)

or

Through electronic communications, such as email, voice mail, text messages, instant messaging, collaboration tools, social media, and the internet – even on personal devices and during non-work hours



Fair employment practices

How can I help Moody's prevent discrimination?

Each Employee has a duty to comply with the provisions of this Code and any applicable discrimination and harassment policies. We expect you to promptly report any suspected or actual violations. If you are a manager, you must demonstrate your understanding of our policy by intervening, if possible, to prevent harassment and discrimination. If you are aware of or receive a report of discrimination or harassment, immediately report it to the People Team, the Compliance or Legal department or the Integrity Hotline. We expect supervisors and managers to report concerns of suspected discrimination or harassment immediately. Failing to report them violates Moody's policy and could lead to disciplinary action, up to and including termination.

What should I do if I believe I have experienced or witnessed harassment?

Moody's can only remedy this conduct if we know about it. If you believe you have observed or experienced harassment of any kind, report the matter as soon as possible to either:

- Your manager
- The [People Team](#)
- The [Compliance department](#)
- The [Legal department](#)
- The [Integrity Hotline](#) by phone (see [Our Resources](#) for dialing instructions) or [online](#)

What happens when I report discrimination or harassment?

Moody's investigates all reports promptly, fairly and impartially. We also expect Employees to cooperate as needed in any [investigations](#). If we determine that harassment or discrimination has occurred, Moody's will take appropriate corrective and/or disciplinary action, up to and including termination, regardless of the seniority or position of anyone involved. Because reporting harassment or discrimination can be extremely sensitive, Moody's keeps such reports confidential to the extent reasonably possible.



Personal relationships and nepotism

We maintain a high level of professionalism at Moody's and respect boundaries. To that end, we never let Personal Relationships negatively impact our Company or our reputation.

When an Employee uses their personal influence or power to either aid or hinder another in obtaining employment, promotion, increased compensation or other work-related benefits due to a Personal Relationship, it may create an actual, potential or perceived conflict of interest and/or unprofessional work environment. Personal Relationships between certain Employees also may expose both the Company and the Employees involved to embarrassment and/or potential legal liability.

Therefore, subject to applicable law, Moody's (i) prohibits any members of its Executive Leadership Team or Board of Directors from having a Personal Relationship with any other Moody's employee, and (ii) places restrictions on the employment and hiring of individuals who are in a Personal Relationship with a Moody's employee.

What should I do if I become aware of or become involved in a Personal Relationship?

You must promptly report to your manager and the People Team the existence of any Personal Relationship prohibited by the Personal Relationships and Nepotism Policy. Any manager who learns of such a Personal Relationship, either from an Employee involved in the Personal Relationship or from another source, must promptly notify the People Team.

Failure to report the existence of such a Personal Relationship may result in disciplinary action, up to and including termination of employment, consistent with applicable law.

What happens after a Personal Relationship has been reported?

After a Personal Relationship prohibited by Moody's policy has been reported, the Company will determine in its sole discretion what, if any, action to take to avoid an actual, potential or perceived conflict of interest and/or unprofessional work environment.

Subject to applicable law, such action may include one or more of the following: a change in the responsibilities of the individuals involved in the Personal Relationship; a transfer of one or both individuals to another line of business or department within Moody's; or one or both Employees may be asked to leave Moody's.

What qualifies as a "Personal Relationship"?

For purposes of Moody's Personal Relationships and Nepotism Policy, individuals in a Personal Relationship are relatives (by blood or through marriage or domestic partnership), spouses, domestic partners, individuals cohabitating and sharing financial responsibilities, and/or individuals in a romantic and/or sexual relationship.



Learn more

[Personal Relationships and Nepotism Policy](#)



Health and safety

Moody's is committed to protecting the safety, health and well-being of everyone in our workplace.

Each of us at Moody's plays a key role in ensuring a safe work environment. One of the most important things we must do, both as a Company and as individuals, is to follow all environmental, health and safety laws and regulations everywhere we do business, including those related to public health emergencies. We believe that it is our obligation to respect the environment in the communities where we operate and live. We strive to operate in a way that protects and preserves our environment and natural resources and maintains a healthy, safe and environmentally sound workplace.

WORKPLACE VIOLENCE

To preserve a safe workplace, Moody's does not tolerate acts of workplace violence by Employees, customers, visitors, vendors, consultants, independent contractors, interns, temporary workers or other individuals doing business with us.

This includes any behaviors that:

- Abuse, threaten or intimidate another person; or
- Negatively affect an individual, either physically or psychologically.

If you have experienced or suspect workplace violence of any kind, report your concern to the [People Team](#), Corporate Security or the [Legal department](#). For more information, consult our [Global Workplace Violence Prevention Policy](#).

Workplace violence can happen ...

- In our offices
- At outside Moody's-related events
- On Moody's [technology resources](#), such as email, voicemail, the internet, instant messaging, collaboration tools and other communication channels

No matter where workplace violence happens, we prohibit it at Moody's.

SUBSTANCE ABUSE

We expect you to conduct Moody's business free from the influence of any substances that impair your ability to work safely and effectively. That includes:

- Alcohol;
- Illegal drugs;
- Controlled substances; or
- Prescription medication (in some circumstances).

While we know there may be times when alcohol is served at Moody's-sponsored events or business-related meals or social functions, always practice moderation and act professionally and responsibly. Inappropriate behavior or consumption of alcohol may result in disciplinary action, up to and including termination. Because local policies and laws regarding drugs and alcohol may differ, know and carefully follow the rules for your location.

What is prohibited at Moody's?

While you are on Moody's premises or doing work for us, you may not:

- Manufacture, distribute, dispense, purchase, transfer or transport illegal drugs or controlled substances
- Possess or use illegal drugs or controlled substances without a prescription
- Abuse alcohol or any drug, including prescription drugs



Health and safety

BUSINESS CONTINUITY

We persevere and thrive in the face of complexity, and we know that emergencies can happen at any time. We must be ready to manage and maintain our normal operations as best we can. Whether an emergency is technological, natural or human-caused, we expect you to be alert, prepared, able to adapt to change and push through difficult problems until we find a clear answer. That includes following all Moody's plans for business continuity, emergency notifications, evacuation procedures and remote working, if necessary.

If you work with vendors and other business partners, you should establish controls to limit disruptions during a potential outage or failure. Work continually to test and improve these plans and address any deficiencies.



Learn more

[Global Workplace Violence Prevention Policy](#)

[IT Use Policy](#)

[PurposeFirst and Remote Working Policy](#)



Working remotely

When working remotely, all Employees must follow Moody's [PurposeFirst and Remote Working Policy](#), which requires you to (among other things):

- **Ensure that WorkWise reflects your assigned work location and work only from the physical work location attributed to you in WorkWise (unless you are approved to work in another location as part of the “Work From Anywhere” program).**
- **If you wish to take advantage of the “Work From Anywhere” program, fully comply with its terms and conditions.**
- **When working remotely, you remain subject to Moody's policies and procedures, and you must work your regular work schedule and be fully available to communicate with your manager and other Employees during regular work hours. Employees must also manage their personal responsibilities, including child and dependent care, in a manner that allows them to fulfill their job responsibilities.**



Data privacy

Part of respecting people is respecting their privacy. For that reason, Moody's is committed to following privacy laws and handling personal information with extreme care.

PROTECTING PERSONAL DATA

Personal information is an important part of our work at Moody's. Whether personal data shared with us belongs to our Employees or third parties, we understand our duty to keep it private.

As a Moody's Employee, it is your responsibility to secure, protect and maintain the confidentiality of any personal data you access during and after your relationship with Moody's. Carefully follow applicable data privacy laws as well as Moody's IT Use Policy, Moody's Personal Data Retention Policy and any other Moody's policies or guidelines.

What are some examples of personal information?

- Name
- Contact information
- Birth date
- IP address and computer details
- Email address
- Photograph
- Education and qualification details
- Marital status
- Number of dependents
- Employment details including title, absences, salary and benefits
- Performance evaluations

PHOTOGRAPHS, VIDEOS AND RECORDINGS

There may be times when Moody's or a third party takes photographs, video and/or audio recordings of our Employees, for use in connection with Moody's business (including in our internal or external materials, in electronic and print formats, on our intranet and external websites or on social media). We will, however, make reasonable efforts to inform you when you are participating in an event that is being photographed or recorded. If you choose to participate in these events, subject to applicable law, you consent to being photographed and recorded and permit Moody's to use this media at any time.

To prevent harassment and disclosure of material non-public information and/or private, confidential or proprietary information, Employees may not take any secret or unauthorized recordings or photographs while engaged in Moody's business. Local laws in many jurisdictions may also prohibit photography and/or video or audio recording without permission from the person being recorded. For more information on recording, please consult the Video/Audio Call Recording Policy.

ARTIFICIAL INTELLIGENCE

Artificial intelligence ("AI") has the potential to transform the way we do business, and we recognize this transformation brings new challenges. As a leader in safe and responsible AI use, Moody's has established a set of principles to foster a culture of thoughtful, responsible AI deployment. Moody's [Principles for Responsible AI](#) reflect our commitment to safe and responsible AI use.



Learn more

[IT Use Policy](#)

[GenAI resource hub](#)

[Personal Data Retention Policy](#)

[Principles for Responsible AI](#)

[Video/Audio Call Recording Policy](#)

Our relationships

The way we deal with our customers, business partners and competitors molds Moody's reputation, builds long-term trust and ultimately determines our success.

Fair dealing	19
Antitrust and competition	19
Engagement of consultants and contractors	22



Fair dealing

Moody's has a long-standing reputation for integrity. We build on that reputation when we act fairly and ethically in all our relationships.

FOLLOWING THE RULES

The way we deal with Moody's customers, business partners, competitors and Employees reflects on our Company, so we act fairly in every interaction, request and transaction. When you deal with others on behalf of Moody's:

- Never take unfair advantage of others through manipulation, concealment, abuse of information, misrepresentation of material facts or any other unfair dealing practice.
- Be honest about Moody's services and capabilities. Never make false claims.
- If customers make requests or ask questions, be responsive and transparent – only promise what you can deliver.
- Never grant a request to do something that you believe is unethical, could compromise the quality of our service or violate Moody's policies or the law.



Antitrust and competition

Moody's believes in fair competition on the merits. This means promoting our products and services and winning business based on the superior quality, price and service we offer our customers – never based on unfair or illegal business practices.

FOLLOWING ANTITRUST AND COMPETITION LAWS

Antitrust and competition laws prohibit a range of practices that prevent, restrict or distort free and fair competition. Such laws, which exist in most countries where Moody's operates, generally serve as the basis of Moody's policies aimed at promoting competition. Moody's is committed to upholding the applicable antitrust and competition laws and upholding the principles of free and fair competition in all of our commercial activities. We will not tolerate any business transaction or activity that violates them. Every Employee is responsible for compliance with applicable antitrust and competition laws and the relevant Moody's policies, including those related to antitrust and competition.

At Moody's, we do not:

- Agree or collaborate with our competitors unless authorized to do so by the Legal department; or
- Attempt to abuse our market position, such as by trying to exclude competitors or exploit our customers using anticompetitive means.

Antitrust and competition violations can lead to large fines for Moody's, fines, jail terms and other sanctions for individuals involved, and substantial damages for injured parties. Because the antitrust laws are broad in their language, they do not contain a definitive list of anticompetitive activities. So, we must watch for possible antitrust implications of Moody's business activities. Contact the [Legal department](#) if you encounter or suspect misconduct or a situation that could violate the law.

Before negotiating any agreement with a competitor, obtain clearance from the Legal department.

What can constitute an “agreement” or “collaboration”?

What can constitute an “agreement” or “collaboration” under antitrust and competition laws is broad. It does not need to be a written contract. It can be a verbal agreement or even an agreed “unspoken rule.” The determining factor is whether there is a common understanding between the parties.

IDENTIFYING POTENTIAL ANTITRUST ISSUES AND ANTICOMPETITIVE ACTIVITIES

Antitrust violations often involve agreements or collaboration between competitors such as:

Price Agreements. Never communicate with a competitor about current or future prices, pricing policies, bids, costs, margins, discounts, promotions, terms and conditions of sale, credit terms or royalties. Follow this basic rule: Moody's must determine the price and conditions of sale of our products and services independently, never communicating with competitors, directly or indirectly, about these terms.

Allocation of Territories or Customers. Never agree with a competitor to sell (or not sell) in any geographic area or to any customers or class of customers or to divide or share business.

Antitrust and competition

Agreements to Limit or Restrict Production.

Never agree with a competitor to restrict or increase production or supply. Contact Moody's Legal department in advance when you know competitors will be discussing limits on the collection of data.

Marketing. Never agree or coordinate with a competitor on sales, marketing or promotional activities or plans.

Hiring. While there may be times when companies agree not to recruit employees encountered through a collaboration (e.g., non-payroll contractors used by Moody's who have non-solicitation or non-hire clauses in their contracts), do not enter into any agreement that relates to not recruiting or hiring employees from other companies, regardless of whether the companies are competitors. Making agreements or sharing sensitive information about the terms of employment, such as salaries and benefits, of each company's employees may also be illegal.

Boycotts. Do not agree with a competitor to not sell to or buy from particular individuals or firms.

Provision or Receipt of Commercially Sensitive Information.

- Do not share commercially sensitive information with competitors.
- Do not participate in any third-party benchmarking unless you have advance approval from the [Legal department](#).
- If you receive commercially sensitive information about a competitor from the competitor or another party, forward it to the Legal department immediately. Do not review the information further, and do not open, process, discuss or disseminate it unless authorized to do so by the Legal department.
- Do not discuss with anyone any commercially sensitive information about a competitor received from the competitor or another party without first obtaining approval from the Legal department.
- Contact the Legal department before engaging a third party to gather competitive intelligence. While you may obtain competitive intelligence from public sources or customers, do not use third parties as conduits to share commercially sensitive information with or obtain commercially sensitive information from competitors.

Standardization. Standardization agreements enable customers to deal with multiple suppliers through a common interface. However, product standardization could, in some cases, violate antitrust laws. Consult Moody's Legal department before entering into any discussions about standardization.

Trade Associations. Use extra caution when participating in industry or trade association meetings with competitors. Before participating in an industry association working group that includes even one employee of a competitor, you must obtain approval from the Legal department.

At trade association meetings:

- Request a draft agenda before the meeting.
- Follow the agenda items closely.
- Request that minutes be taken of the meeting.
- Avoid discussions regarding competitively sensitive information or interactions that may violate antitrust and competition laws and regulations, or even give rise to the appearance of a violation.
- Follow the guidelines issued by the organization and any additional guidance provided by Moody's Legal or Compliance departments.
- If any interaction occurs that you believe may violate antitrust and competition laws, regulations or this Code, clearly express your concerns, ask for your objection to be recorded in the meeting minutes and take your own contemporaneous note summarizing the interaction and your objection, leave the meeting and contact Moody's Legal department for advice. If you become concerned about an interaction or meeting after the fact, send a contemporaneous note summarizing the interaction and your concern to Moody's Legal department for further guidance.



What information is commercially sensitive?

It includes non-public information about:

- | | |
|--------------------------------|---|
| → Prices or pricing policies | |
| → Bids | → Royalties |
| → Costs | → Business or marketing plans |
| → Margins | → Promotional activities |
| → Discounts or promotions | → Plans for dealing with customers or suppliers |
| → Terms and conditions of sale | → Current or future R&D activities |
| → Credit terms | |

Do not share this or any other information that could be useful to competitors.



Antitrust and competition

Limiting Customers' Ability to Deal with Competitors. Restrictions on customers' ability to deal with competitors, such as requiring them to buy all of their requirements from a particular seller, may sometimes violate antitrust law. Never enter into agreements that limit someone's ability to purchase goods or services from Moody's competitors without pre-approval from Moody's Legal department.

Predatory Pricing. Pricing below cost may sometimes violate antitrust law. Be sure to follow Moody's pricing guidelines and ask Moody's Legal department before offering a product or service at a price you believe may be below Moody's cost to provide the product or service.

Loyalty Discounts. Discounts provided in return for obtaining all or most of customers' purchases may sometimes violate antitrust law. Generally, volume discounts are permissible when they are part of a uniform schedule of purchases. However, discounts requiring customers to purchase all or most needs for a particular type of product from Moody's may sometimes be illegal. Ask Moody's Legal department before offering or implementing any loyalty discount.

Tying. Conditioning the sale of one product or service on the customer's purchase of a second, distinct product or service, may violate antitrust laws. Because the legality of any such tying arrangement depends on a number of complex legal and economic factors, do not implement such an arrangement without first asking Moody's Legal department.

Bundling. Offering discounts for the purchase of two or more products or services at a price lower than the sum of the prices of the individual products or services or only offering the products or services for sale jointly may sometimes violate antitrust laws. Because the legality of such arrangements depends on a number of complex legal and economic factors, no such bundling arrangement should be implemented for Moody's Ratings products or services without prior consultation with Moody's Legal department.

Refusals to Deal. Generally, Moody's has the legal right to refuse to buy from or sell to anyone, but we must reach these decisions independently. An agreement with a supplier or customer not to deal with a competitor could, however, violate the antitrust laws under certain circumstances. In some cases, even an independent decision to refuse to deal may be illegal. It is more likely a violation if it involves discontinuing a business relationship rather than refusing to enter a new relationship. A refusal may also be illegal if it is done to pressure someone not to deal with a Moody's competitor or to punish them for doing so. Do not agree with a supplier or customer about which third parties either may do business with. Ask Moody's Legal department before refusing to deal with a competitor or a customer of a competitor.

Price Discrimination. Under the EU regulations for credit rating agencies, fees charged by credit rating agencies must be nondiscriminatory and based on costs. Also, in the EU and certain other jurisdictions, price discrimination may breach antitrust and competition law in certain circumstances. While U.S. antitrust law provisions on price discrimination are typically not applicable to Moody's because they only apply to the sale of commodities or tangible products, a number of U.S. states have laws regarding price discrimination that do apply to services.

Disparagement. Statements critical of competitors, if false or misleading, are disparaging and could potentially violate antitrust laws, as well as the [fraud and deception laws](#). In your interactions with customers, always focus on selling Moody's products and services rather than disparaging competitors.

Beyond the types of arrangements discussed here, other competitor interactions could potentially violate applicable antitrust and competition laws. That is why certain interactions with employees of competitors require pre-approval from the Legal department. For more information on how to handle these interactions and when and how to seek pre-approval, see our [Interactions with Employees of Competitors - Procedure](#).

What do I do if I receive an inappropriate request from a competitor?

If a competitor asks you to enter into an agreement on pricing or suggests other potentially improper activity (such as that outlined here), including requests to share commercially sensitive information about Moody's practices, clearly and forcefully object to the request, end the conversation, make a contemporaneous note of the conversation and your objection, and immediately seek advice from Moody's Legal department. If you receive the request over email (or in another written form) do not respond. Immediately inform Moody's Legal department, which will help you determine any further action to take.



Learn more

[Interactions with Employees of Competitors - Procedure](#)



Engagement of consultants and contractors

Consultants and contractors act as an extension of Moody's business, so we carefully follow the rules when engaging with these individuals.

EMPLOYEES AS CONSULTANTS/ CONVERSION OF CONSULTANTS TO EMPLOYEES

If you are a current Moody's Employee, your role at the Company is clearly defined. You may not be engaged to work as either a consultant, independent contractor or contract worker for the Company. This situation is known as "dual employment," which we do not permit at Moody's, regardless of whether or not the work to be performed is related to your current duties, or whether or not payment is made outside of normal payroll routines.

Be aware, before you engage a former Moody's Employee as a consultant, independent contractor or contract worker for the Company, you must first obtain written approval from Moody's Legal department. Also consult the [Legal department](#) and [People Team](#) in situations where a current or past Moody's consultant, independent contractor, or contract worker wishes to become a Moody's Employee.

INDEPENDENT CONTRACTORS/ CONTRACT WORKERS

If you would like to engage any individual or entity to provide services to Moody's, including as a consultant, temporary contract worker or independent contractor (including staff augmentation resources), you must carefully follow Moody's [Non-Employee Engagement Policy](#).



Learn more

[Non-Employee Engagement Policy](#)



Our company

Each of us, at every level of Moody's is a stakeholder in our Company's success.

Accurate business records	24	Confidential information	29
Deception and fraud	25	Intellectual property	32
Conflicts of interest	26	Use of Company resources	33
Accepting gifts, entertainment and other offers	28	Use of personal devices and social media	35



Accurate business records

Because our business records help us make critical and strategic decisions for Moody's and fulfill our obligations, we make sure they remain accurate at all times.

MAINTAINING ACCURATE BUSINESS RECORDS

Moody's business records must always be reliable, with our books, records and accounts properly reflecting all transactions and other Company events. Because each of us contributes to Moody's records, we all have a responsibility to follow our policies and procedures and ensure that our records are:

- Prepared accurately;
- Reflective of the true nature of the transaction; and
- Stored properly.

Make sure every transaction aligns with Moody's general or specific authorization and our policies. Never falsify or alter the Company's financial and other books and records. Never create or contribute to records that are intended to mislead anyone or conceal anything. Some examples include:

- Making records appear as though payments were made to one person when they were actually made to another;
- Submitting expense reports that do not accurately reflect the true nature of the expense; and
- Submitting inaccurate sales results to the Accounting department.

Any Employee who creates or helps create misleading or falsified records could face disciplinary action up to and including termination. Submitting false financial results of any kind also violates this Code and can result in fraud charges against the Company.

What should I do if I believe an Employee has falsified a business record?

If you are aware of a potentially falsified business record, hidden funds or assets, false entries in Moody's books and records or any inappropriate payments, report the matter immediately to the Controller and the [Legal department](#) or the [Integrity Hotline](#).



Consider this ...

A coworker told me her spouse accompanied her on a business trip. She also submitted an expense report that included two expensive dinners and theater tickets. While she claimed a customer joined her for these events, I believe she was really with her spouse. What should I do?

You should report your concerns immediately. Submitting an expense report that falsely identifies who attended an event is strictly prohibited. See Moody's [Travel and Entertainment Policy](#) to learn more.



Learn more

[Travel and Entertainment Policy](#)

Why is accuracy so important?

Accurate records help Moody's fulfill:

- Regulatory record-keeping requirements and Company policies
- Our obligation to provide full, fair, timely and understandable financial information and other disclosures to the public and governments around the world



Deception and fraud

Moody's understands that fraudulent activities can damage our bottom line and our global standing. We must rely on our talents to succeed - never deception or fraud.

TRUST THROUGH INTEGRITY

Building and maintaining trust is at the heart of Moody's business. Our customers, shareholders and third parties need to know they can rely on the things we do and say. That is why we must be honest and transparent in all our dealings and never engage in any form of fraud or deception with a customer, the Company or any other party.

To avoid any suggestion of deception or fraud:

- Remember, a representation on its own can be misleading, even though each statement in it, considered separately, is actually true.
- Disclose all important additional or qualifying information. Failing to do so may be a misrepresentation.
- Never shade the truth when making representations.
- Never claim characteristics for a product or service that it does not have.
- Be able to prove any statements you make about Moody's and our competitors' products and services.

What is fraud?

Behind every act of deception or fraud is a misrepresentation, a statement that is not true or is misleading. This activity is also designed to give the person perpetrating the fraud an unfair advantage.



Conflicts of interest

To protect our Company's reputation and credibility, our personal interests and activities must never influence the decisions we make for Moody's.

RECOGNIZING AND AVOIDING CONFLICTS

As a member of the Moody's team, you have an obligation to conduct Moody's business honestly and ethically. That includes following our internal policies to properly handle and mitigate conflicts of interest between personal and business relationships.

Conflicts of interest can be actual or potential and can arise in a variety of situations, including:

Engaging Vendors. A conflict of interest may arise when an Employee's interest or connection to a vendor could conflict with Moody's interests. The purchase of all services and supplies must be made on the basis of quality, price and service. We must never choose a vendor based on its status as a customer or based on any personal connection an Employee may have with a vendor. You may not participate in the selection of a vendor if you or an immediate relation has a personal interest or other significant interest in the vendor.

Interests in Outside Entities. An Employee's outside activities or business interests could conflict with their duties at Moody's or with Moody's interests. Remember, any decision to do business with individuals or companies must be based solely on Moody's best interests.

- Do not select vendors, business partners or contractors, or make decisions (including rating process participation) for any entity, if you, an immediate relation (e.g., a spouse, partner, parent, child or sibling), or anyone with whom you have a close relationship, has a significant interest in that entity.
- Do not acquire any interest in an entity that could create a conflict of interest without first obtaining approval from your manager or supervisor. Then have the [Compliance department](#) review your request.
- If you are unsure if an interest in an entity is significant and/or reportable, disclose it to your manager, who can decide if your engagement with that entity would be appropriate and if you should report it to the Compliance department.
- For additional guidance on outside business interests, see our [Outside Interests and Other Potential Conflicts Policy](#).

What is a conflict of interest?

A conflict exists when your personal interests interfere in any way with the Company's interests.



Disclosing conflicts

EMPLOYEES: You must disclose any actual or potential conflicts of interest so Moody's can determine how (if possible) to mitigate the conflict. If you are unsure if a particular situation creates a conflict of interest, discuss it with your manager or contact Compliance.

EXECUTIVE OFFICERS AND DIRECTORS: Special rules apply to Moody's Executive Officers and Directors. Before engaging in conduct that creates an actual, apparent or potential conflict of interest, disclose all facts to the General Counsel and the Chairman of the Audit Committee of the Board of Directors. Also obtain prior approval from the Board of Directors.

Positions With Outside Entities. When an Employee of Moody's serves as an officer or director of, or holds another position with, an outside entity, their duties with that outside entity may conflict with Moody's interests. You may not accept such a position without prior approval from your manager and review from the Compliance department. Be aware that stricter rules apply to employees of Moody's Ratings, as well as Directors and Executive Officers of Moody's Corporation. Before accepting employment with an outside entity, discuss it first with your manager or supervisor so you can avoid a conflict and ensure compliance with our policy.

Prior Employment. An Employee's previous employment with a customer, issuer, vendor or other business contact may conflict with their job duties at Moody's. In a situation like this, you may not be permitted to participate in certain activities relating to a prior employer, at least for a certain period of time.



Conflicts of interest

Improper Personal Benefits. A conflict of interest may arise when an Employee or a member of their family receives improper personal benefits due to their position at Moody's. These benefits might include discounts, gifts, opportunities or other advantages that would not be provided to you but for your position at Moody's and are not offered to other similarly situated employees. You may not accept benefits that have not been authorized and approved by the Company, including loans or guarantees of personal obligations offered to directors and executive officers. For questions related to what might constitute an improper personal benefit, contact the Compliance department.

Personal Relationships. When a Moody's Employee has a personal relationship with an employee of a customer, issuer, vendor or other business contact, that may create a conflict of interest. If you become involved in or have a personal relationship like this, notify your manager and the Compliance department so they may assess the situation and advise you whether any steps must be taken to mitigate the conflict.

Business Travel. When an Employee improperly benefits from personal travel rewards, that may create a conflict of interest. If you travel for Moody's business, follow Moody's [Travel and Entertainment Policy](#) and take advantage of the lowest logical fare and accommodations offered. Do not choose particular carriers or hotels based solely on your personal preference or participation in a rewards program if more cost-effective alternatives are available.



Consider this ...

I was recently hired as an information services manager for Moody's. For many years, I have had a private investment in a software company, which is now worth \$20,000. My first assignment will be to develop specifications for the purchase of a new software package, and the company I am invested in is one of the vendors Moody's is considering. Since I don't believe this will affect my judgment or create a conflict of interest, can I just keep this to myself?

No. You should have disclosed this investment when you were hired at Moody's. If you make an investment like this after being hired, notify your manager immediately of your ownership in this company. Your manager will decide if you should be taken off that particular assignment and/or report this outside interest. As a general matter, you cannot participate in decisions about engaging a vendor if you have any personal interest (financial or otherwise) in that vendor.

May I sell products to coworkers or Moody's customers? What about charitable contributions?

Moody's does not permit Employees to solicit other Moody's Employees or customers for personal gain, whether you are on working time, on a break or at lunch. This applies not only to selling products, but also to soliciting gifts, entertainment, social invitations and other personal benefits. We also prohibit use of Company resources, including phones, email and computers, to engage in outside business activities. NOTE: You may solicit charitable contributions from other Employees or raise funds on behalf of charitable organizations, as long as you do not solicit any subordinates. Also remember, you may not use Moody's [technology resources](#), including Moody's email system, to solicit contributions.



Do's and don'ts of charitable activities

When engaging in charitable activities:

- **Do so independently, using your own time and resources – not Moody's.**
- **Do not let your activities interfere with your work for Moody's or harm our reputation.**
- **Do not donate in Moody's name or speak for our Company unless you are authorized. We will not reimburse you for personal donations.**
- **Never pressure your coworkers to support or donate to any cause, whether or not it is sponsored by Moody's.**



Learn more

[Outside Interests and Other Potential Conflicts Policy](#)

[Travel and Entertainment Policy](#)



Accepting gifts, entertainment and other offers

At Moody's, we build business relationships on mutual trust and integrity. We never rely on improper offers to gain influence or favor.

RECOGNIZING INAPPROPRIATE OFFERS

Business courtesies are common in business, but when they are inappropriate, they can lead to serious problems for Moody's. Receiving gifts, entertainment or anything of value from someone who does or seeks to do business with Moody's can create an actual, potential or the appearance of a conflict of interest. It can also lead to accusations of [bribery](#). For that reason, Moody's strictly limits the types of gifts, entertainment or other things of value Employees may give to or accept from business contacts.



Can I accept this from a business contact?

Gifts

Moody's Employees (except Rating Personnel as discussed) may accept occasional non-cash business gifts of nominal value less than US\$50 per gift, not to exceed \$100 per year from any business contact.

No Moody's Employee may accept

- Cash or a cash equivalent, like a gift certificate or gift card
- Any item of any value when it is offered to influence a decision at Moody's
- Anything that is extravagant, lavish or exceeds social or business custom, such as a gold wristwatch or a case of fine champagne
- Anything of value that is concealed or not offered openly and transparently
- Anything from a business contact that has been solicited or encouraged for them to offer

If you receive an inappropriate offer, decline it immediately and/or return it to the giver as tactfully as possible. You may refer to this Code when returning the offer and report it to your manager and the Compliance department.

Entertainment

All Moody's Employees (except Rating Personnel as discussed) may accept invitations from business contacts to participate in entertainment (such as meals or a sporting event), provided the business contact is present and there is a legitimate business purpose.

Depending on the value of the event, you may have to obtain pre-approval from your manager and the Compliance department. See the Gifts, Entertainment and Anti-Bribery Policy for more information about required approvals.

RULES FOR RATING PERSONNEL

Rating Personnel may not solicit or accept anything of value from any rated entity or their sponsors or agents.

Rating Personnel may only accept minor incidentals provided in the context of a business interaction (such as light meals, pens and paper), as long as such minor incidentals do not exceed a value of US\$25 (or the local equivalent) per person, per business interaction, per day. To learn more about the limitations on gifts, entertainment or other things of value for Rating Personnel, see the [Gifts, Entertainment and Anti-Bribery Policy](#). If you have any questions about the appropriateness of any offer, seek guidance from the [Compliance department](#) before accepting.

Gifts, entertainment or other things of value offered to Rating Personnel by any other entity are subject to the restrictions for all other Moody's Employees.

What about giving gifts? Are there rules on what gifts I can give to business contacts?

For information on what gifts, entertainment or other things of value can be provided to Moody's business contacts, review the [Anti-Bribery and Anti-Corruption section](#).



Learn more

[Gifts, Entertainment and Anti-Bribery Policy](#)

[Anti-Bribery and Anti-Corruption](#)

Confidential information

Information is critical to our business and our relationships, so we handle it with care and protect it from misuse or disclosure.

MAINTAINING CONFIDENTIALITY

In the course of your work for Moody's, you may come across information that is confidential, including:

- Moody's internal business information;
- Employee information; and
- Customer information.

Protecting confidential information helps us fulfill our legal obligations and encourages customers' good faith disclosures. If confidential information is disclosed inappropriately, it could harm Moody's reputation and violate laws, so remember your obligation to protect it.

How do I protect confidential information?

- Because a wide variety of information is confidential, use caution and do not disclose such information before confirming whether it is confidential.
- If you are unsure if certain information is confidential, contact your manager or Moody's [Legal department](#).
- Only share confidential information with other Moody's Employees when they have a valid business purpose to know the information and in compliance with applicable policies.
- Do not discuss confidential information with third parties, including family members or business or social acquaintances, or in places where you can be overheard, such as taxis, elevators or restaurants.
- Secure documents, devices, and computer files containing confidential information, whether in the office or outside the office.

When it comes to confidential information, remember:

- Moody's Legal department must review all agreements relating to confidentiality prior to execution.
- Special requirements apply when exchanging Confidential Business Information and Covered Business Information. See our [Moody's Ratings - Moody's Analytics Separation Policy](#) to learn more.
- The use of personal email accounts to store, transfer or distribute Moody's confidential or proprietary information is not permitted. For a full discussion of the policy requirements and what to do under exigent circumstances, please see the [IT Use Policy](#).
- Disclosing or misusing confidential information could also violate laws related to [insider trading](#) and [data privacy](#).
- Employees who improperly disclose or misuse confidential information may face disciplinary action, up to and including termination.
- Your obligation to keep information confidential continues even after your employment with Moody's ends.

For more information on how to protect confidential information, refer to Moody's [Confidential Information and Material Non-Public Information Policy](#).



Confidential information

PROTECTING MOODY'S TRADE SECRETS AND PROPRIETARY INFORMATION

Through your work, you may also learn facts about Moody's business, plans or operations that have economic value because we have not disclosed them to competitors or the public. These are the Company's trade secrets and proprietary information, which you must keep confidential.

- Do not disclose trade secrets and proprietary information externally unless your business duties require you to share it, and only share it with parties with whom Moody's has a confidentiality agreement.
- Remember, these rules apply equally to our customers' trade secrets.
- If you are unsure if you may disclose a trade secret or proprietary information to a third party, contact Moody's [Legal department](#).



Recognizing trade secrets and proprietary information

A few examples of such information include:

- Customer lists
- Terms offered or prices charged to customers
- Non-public algorithms, formulas or methodologies
- Marketing or strategic plans
- Potential acquisitions
- Proprietary product designs or product systems developments

MOODY'S RATING PROCESS

Moody's goal is to maintain an active and constructive dialogue with all market participants, including issuers, investors and intermediaries. When we safeguard our continued access to non-public information, we advance the important role played by Moody's Ratings in the market. It is particularly important to protect the confidentiality of the information shared with us by the issuers we rate and information relating to the credit rating process.

- **Issuer Information.** When speaking with investors, subscribers, the press or other third parties, do not disclose confidential information that has been provided by an issuer and not previously disclosed in our published credit ratings or credit research products or other publicly available sources. Only include confidential information received from issuers in our publications if the issuer has given prior consent.
- **Future Rating Actions.** When speaking with investors, subscribers, the press or other third parties, do not give any guidance as to possible future rating actions on any issue or issuer, unless that information has been publicly announced in a Moody's Ratings press release. this restriction applies to the existence, timing or substance of an upcoming rating action, as well as the absence of a rating action. Also, do not give, either implicitly or explicitly, orally or in writing, any advance assurance or prior guarantee of, any rating action.

- **Rating Committees.** Rating committee deliberations must also be kept confidential. While ratings are determined by majority vote of a committee, Moody's Ratings publishes only one rating opinion. Accordingly, do not disclose to third parties or issuers information regarding the rating committee process, including the vote breakdown or the fact that an analyst might have disagreed with the decision reached by the committee. Also, do not disclose the names or titles of members of a rating committee. If you are a Moody's Ratings employee, keep in mind that there are additional policies and procedures relating to the identification and management of [conflicts of interest](#) that may arise in connection with the credit rating process. Familiarize yourself with and follow those policies.



Learn more

[Moody's Ratings - Moody's Analytics Separation Policy](#)

[IT Use Policy](#)

[Confidential Information and Material Non-Public Information Policy](#)



Confidential information

SEPARATION OF MOODY'S RATINGS FROM OTHER MOODY'S BUSINESS SEGMENTS

The essence of our credit rating business is the absolute and unquestioned integrity of our ratings, measurement and evaluation processes. As an Employee, you may not engage in any conduct that interferes, or might have the appearance of interfering, with the outcome of any specific rating, measurement or evaluation process of Moody's Ratings in a manner that could compromise (or appear to compromise) the integrity of such process.

For these reasons, although Moody's Ratings Employees and Employees in other parts of Moody's frequently collaborate and share business information in certain circumstances, we operate Moody's Ratings separately from other Moody's business segments. As a credit rating agency, Moody's Ratings is required to establish, maintain and enforce policies and procedures to address and manage conflicts of interest, including those resulting from its affiliation with other Moody's business segments. The [Moody's Ratings - Moody's Analytics Separation Policy](#) addresses this risk and provides direction on when, and under what conditions, certain Employees may exchange specified categories of information. All Employees are required to comply with the Moody's Ratings - Moody's Analytics Separation Policy.

If you have questions relating to the separation of Moody's Ratings from other Moody's business segments, seek guidance from the [Compliance department](#). If you believe you may have improperly or inadvertently received information that violates the Moody's Ratings - Moody's Analytics Separation Policy, notify your manager and the Compliance department immediately.



Consider this ...

I am working on a major contract to provide certain Moody's data products to a large multinational financial institution, ABC Bank. As the negotiations draw to a close, an executive of ABC Bank told me that ABC Bank recently met with Moody's Ratings about a credit rating for a large debt offering they are planning. The ABC Bank representative is concerned the bank will not get the credit rating he was hoping for and asks if I could call my colleagues in Moody's Ratings and put in a good word for ABC Bank. Is this appropriate?

No. It would be inappropriate to make a call like this. As an Employee in a Moody's business that is separate from Moody's Ratings, you may not engage in conduct that might have the appearance of interfering with or attempting to influence the outcome of a specific credit rating.



Learn more

[Moody's Ratings - Moody's Analytics Separation Policy](#)



Intellectual property

We are committed to protecting intellectual property rights by securing and responsibly handling the ideas, works and innovations of others.

CREATING YOUR WORK PRODUCT

During the course of your employment, Moody's owns all intellectual property rights in your Work Product, to the extent permitted by law. This includes all copyrights, trademarks, patents, and know-how associated with your Work Product.

If any Work Product you create is not deemed "work made for hire" or does not belong to Moody's, you agree to assign to Moody's all your rights, title and interest in the Work Product. That includes present and future copyright and patent rights. If local law prohibits assignment of rights, you grant Moody's an exclusive, unlimited, worldwide, perpetual, irrevocable, royalty-free license to your Work Product, to the extent allowed by law.

When it comes to your moral rights of your Work Product, you irrevocably consent to Moody's (in accordance with the law) using your Work Product in any manner that might otherwise infringe on your moral rights.

You will:

- Complete any documents necessary to document Moody's ownership of your Work Product.
- Promptly disclose to Moody's any new Work Product that you develop.

Do not misuse any third-party intellectual property, confidential or proprietary information or trade secrets in creating your Work Product or performing any service for Moody's.

What is your work product?

In general, Work Product is the work you create during your employment with Moody's.

What are protected works?

They include:

- Most publications
- Computer software
- Video and audio tapes or files
- Certain databases
- Material displayed or published on websites, including articles, musical recordings (such as MP3 files), graphic designs, photographic images and audiovisual materials

PROPER COPYING AND USE

The foundation of our business at Moody's is based on our valuable intellectual property. We must be sensitive to the intellectual property rights of others and the laws protecting intellectual property. Generally, it is against the law to make copies of legally protected works or use them without proper permission. Wrongfully copying copyrighted materials can lead to liability for you and Moody's.

When preparing any Work Product (including presentations to or publications for Moody's Employees, customers, investors or other third parties), do not copy or use protected works prepared by anyone who is not a Moody's Employee (or was not a Moody's Employee when the work was prepared), unless you:

- Acknowledge using the protected work and in your Work Product, identify (at a minimum) the name of the author, publisher and owner of the work.
- Accompany extracts of protected works with Moody's own analysis, critique or commentary.
- Obtain the owner's written consent if you use more than an insubstantial portion of the protected work. Moody's [Legal department](#) can help you determine whether written consent is required.

Keep in mind, laws sometimes permit limited "fair use" or "fair dealing" of protected works. Consult Moody's Legal department before relying on this right.



Consider this ...

If our Company pays \$1,000 a year for its subscription to a weekly industry newsletter, would it be fair use to make 12 complete copies of that newsletter each week for our regional sales managers?

No, it would not. It may be a fair use to occasionally copy a limited excerpt from the newsletter and circulate it to the regional offices, but not if such copying would effectively serve as a substitute for the subscription. Consult the Moody's Legal department for any specific questions in this area.

When is copying permitted?

Depending on applicable law or the terms of use of the website you are copying from, there are some instances when copying may be permitted, for example when:

- Preparing a new work summarizing others' copyrighted material and including it in Company publications or reports along with brief quotations
- Occasionally copying and citing small portions of a publication (e.g., an article or book), but not extensive or regularly copying a publication to reduce subscription costs and broaden internal distribution
- Making an archival or backup copy of a computer program
- Forwarding a link to a website where information is published

Some of these examples may still be prohibited due to third-party confidentiality obligations or contractual restrictions. Circumstances when copying is permitted may differ depending on a jurisdiction's intellectual property laws and the facts related to the copying. If you have any questions, consult Moody's Legal department.

Use of Company resources

As Moody's Employees, we are all stewards of our Company's resources.
We must use them responsibly and protect them from theft, carelessness or waste.

SAFEGUARDING OUR ASSETS

Moody's resources are critical to our daily work and operations, and because each of us uses our resources in some way, we also have a duty to protect them, use them efficiently and follow our policies to prevent damage, theft or misuse.

Use Company assets, including Company time, equipment, materials, resources and information, for business purposes only. Do not use Company office space for personal meetings, and keep personal calls, emails and internet usage on or from Company equipment to a minimum.

Remember, you may not use Moody's resources, including computers, systems (email, messaging, phone, etc.) or other assets, to advance your personal interests, including your personal volunteer, charitable or other public service interests, regardless of whether such interests have been formally reported as interests in [outside entities](#).

SAFEGUARDING OUR TECHNOLOGY RESOURCES

When using Moody's technology resources, carefully follow the [IT Use Policy](#) to ensure proper use. You may never use our technology resources to transmit, download, display, otherwise disseminate or condone the receipt of any sexually explicit material or any material that may be perceived as [harassment](#) of others. If you receive such material, immediately report it to your manager or the [People Team](#).

Always remember that Moody's technology resources, including computers and the internet, are intended to be used for Moody's business. Minimize your personal use and never allow your personal use of these resources to interfere with your work.

Are my personal messages private?

Subject to local law, you should have no expectation of privacy while using any Company technology resources such as computer equipment, voice mail or networking equipment, including email, collaboration tools, instant messaging, SMS/text messages or similar technologies. Moody's reserves the right to monitor use of our technology resources and any communications transmitted or received through our systems without notice where permitted by law. This allows Moody's to:

- Protect the security of our documents, data, information and systems;
- Maintain quality standards;
- Provide business continuity and record retention if an Employee is absent or leaves the Company;
- Respond to subpoenas, judicial orders or other requests of a governmental agency or authority; and
- Investigate concerns of wrongdoing, illegal acts or violations of policy by current or former Employees.

To the extent permitted by law, Moody's may use the results of a review, audit, inspection, interception, access or disclosure for disciplinary purposes or in legal proceedings. Also, by using Company computer, voice mail and electronic communications systems, you acknowledge your understanding of Moody's rights and consent to them where permitted by law.

If you do not want your private personal data inspected, do not use Company equipment for personal matters or save your data on Company computer storage devices. Remember, when you leave the Company, you must return any Moody's property to the Company and Moody's may not be able to return to you any personal data that you stored on Company computer systems.



Use of Company resources

What are Moody's resources?

They include:

- Money
- Time
- Equipment
- Phones and computers
- Internet access
- Information
- Materials
- Supplies
- Technology
- Information resources (including computer systems, voice or email, all copies of documents, messages and any information created, sent, received or stored on our systems)

GOOD CYBERSECURITY PRACTICES

As an Employee, carefully following Moody's cybersecurity policies and procedures will help us secure our technology resources. Remember:

- You are responsible for safeguarding your passwords to access all Company technology resources, including computer and voice mail systems.
- Never share your passwords with anyone, and do not access any account on Company computer or voice mail systems other than your own, unless you are a member of Moody's IT department conducting technical support.
- Safeguard Company laptops, smart phones or any other technology resources provided to you and observe high standards of care to prevent these resources from being lost, stolen or accessed by an unauthorized person.
- Never disable or attempt to evade Moody's security features and controls, such as firewalls, proxy servers and anti-malware software, which protect our technology resources and information.

If you suspect or become aware of any unauthorized access to or loss, damage or misuse of any Moody's technology resources or information, or anything that might compromise the security of our systems, immediately report it to Moody's Help Desk.



Learn more

[IT Use Policy](#)



Use of personal devices and social media

Our personal activities can potentially impact our Company's business and reputation, so we must use care and never allow our personal activities to harm Moody's or anyone else.

PERSONAL DEVICES

Moody's understands the importance of personal devices in our everyday lives. But be aware, your use of any type of personal electronic devices while conducting Moody's business is subject to our policies, including the [IT Use Policy](#), the [Moody's Ratings' Electronic Communications Policy](#), and in some cases, agreements relating to use of personal mobile devices.

If you do any work remotely for Moody's, you may be approved to have remote access to Moody's technology resources through a secure Virtual Private Network ("VPN") or other remote access technology. You may also be permitted to access those resources through certain personally owned mobile devices using a Moody's selected third-party downloadable software application.

Do not download, copy, save, create or work on any Moody's files containing confidential or proprietary information on any system, device or application that is not a Moody's technology resource. All Moody's work must be performed on a Moody's issued/approved device, approved personally owned mobile device, or a Moody's virtual desktop. Do not use any personal email accounts to store, transfer or distribute Moody's confidential or proprietary information.

Always take care not to disclose confidential information.



SOCIAL MEDIA

Moody's recognizes that social media is an important tool that can help us communicate with a wide range of external stakeholders as well as current and future Employees. Social media also plays an important role in many people's personal lives. While using certain social media sites (e.g., LinkedIn, etc.) for legitimate business purposes may be useful to you in your work at Moody's, access to certain social media sites has been blocked from Moody's network, including sites that are primarily used for personal communications, such as Facebook.

Keep in mind that social media must be used appropriately and should never be used in a manner that could disclose confidential information. For example, when attending Moody's meetings or traveling for business, you should not publicize your activities or location on social media or through GPS-based mobile applications as it could alert others about non-public events or information.

Before engaging in social media activity, consult Moody's [Social Media Policy](#), which provides guidance on the appropriate use of social media, whether you are engaging in such activities on Moody's behalf or not.



Learn more

[Social Media Policy](#)

[IT Use Policy](#)

[Moody's Ratings' Electronic Communications Policy](#)

Our responsibility

No matter our jobs at Moody's or where we work, we all have a duty to uphold the laws and regulations that apply to our business.

Insider trading and market abuse	37	International business operations	41
Anti-bribery and anti-corruption	39	Anti-money laundering	43
Political activities	40	Government investigations and litigations	44



Insider trading and market abuse

Trust is essential to who we are. So, we take special care with material non-public information, keeping it confidential and never sharing it or using it for securities trading.

UNDERSTANDING THE LAW

As an Employee, you may have access to confidential information that is not available to the public. That information is for Moody's business purposes only. You may not use or share confidential information to trade securities (such as Moody's stock). This act is known as "insider trading."

The insider trading laws and regulations of the United States and many other jurisdictions prohibit buying, selling or tipping someone else to buy or sell a company's securities when you have material non-public information about that company. Violations could lead to heavy fines (including for Moody's) and lengthy prison terms. In the United States (or when trading on a U.S. stock exchange), violators could also face civil penalties of up to three times the profit gained or loss avoided. In other countries, penalties include fines, public censure, compensation/restitution orders and injunctions and potential prison terms.

If you are in possession of material information before it is publicly disclosed, wait until at least the third business day after disclosure before you trade. This gives the market sufficient time to absorb the information.

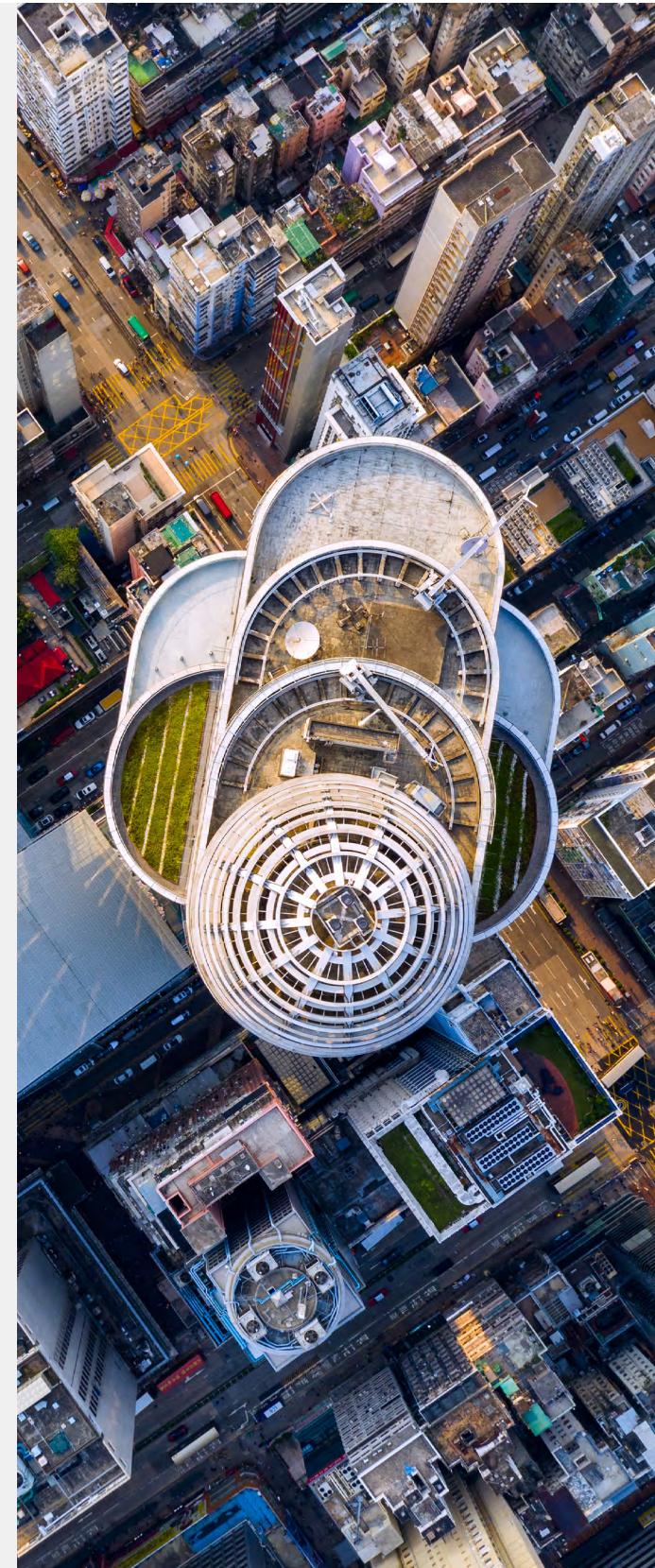
What is material or inside information?

Information is "material" when a reasonable investor would think it important in deciding whether to buy, hold or sell a security; in short, it is any information that could reasonably affect the price of the security.

In other jurisdictions, material information may be called "inside information" or "price-sensitive information."

Some examples include:

- Sales results
- Earnings or estimates (including reaffirmations or changes to previously released earnings information)
- Dividend actions
- Strategic plans
- New products, discoveries or services
- Important personnel changes
- Acquisition and divestiture plans
- Financing plans
- Proposed securities offerings
- Marketing plans and joint ventures
- Government actions
- Major litigation, litigation developments or potential claims
- Restructurings and recapitalizations
- Negotiations or termination of major contracts
- Potential or pending rating actions



What is "tipping"?

You can violate insider trading and "market abuse" laws by sharing material non-public information with another person. If you do, you can be penalized even if you received no financial gain, or in some jurisdictions, if you did not intend to engage in insider trading.

Do insider trading laws only apply in the United States?

No. Insider trading violates fundamental concepts of fairness that are a basic part of Moody's values. If you work outside the United States, you can still be charged under U.S. laws for insider trading of U.S. securities. In addition, many countries in which we do business have similar laws, such as "market abuse" laws, which may be even broader than those in the United States. In France, for example, such conduct may violate both insider dealing laws and other regulations and result in substantial fines and jail terms. The rules on market abuse apply in all countries in the EU.

Since I am not an analyst in Moody's Ratings, I do not receive material non-public information about issuers. Do these rules really apply to me?

Yes. Regardless of your job at Moody's, insider trading laws apply to you. You may learn information about Moody's business plans through your work that could be material non-public information about Moody's or another company. For example, you may learn that Moody's plans to increase its ownership interest in an affiliate. That company's stock price may change as a result. The same rules that apply to material non-public information about Moody's (or the issuers with which we do business) also apply to information you learn about other companies.



Insider trading and market abuse



I am an analyst in Moody's Ratings, and while analyzing a U.S. issuer, I reviewed a non-public agreement that will allow the issuer to enter a profitable new line of business. I casually mentioned it to my sister-in-law. Since she does not trade securities, is this acceptable?

No, it is not. Even though your sister-in-law does not generally trade stocks, she could still do so – or share the information with someone who might trade. And after the issuer discloses the agreement, its stock price may well change, earning a profit for investors. By sharing material non-public information about this issuer, you could be found to have violated U.S. insider trading laws, even if you do not make a profit.

SECURITIES TRADING

To comply with the law and facilitate internal monitoring, Moody's requires certain Employees to report certain securities holdings and transactions. For more information on ownership and holding restrictions, as well as any potential reporting requirements you may have, see Moody's [Securities Trading Policy](#) or contact the [Compliance department](#).

Do I have to check with anyone before trading Moody's stock?

Unless you are a Moody's officer or director or have been designated an "insider" by the Legal department because you regularly possess material non-public information about the Company, you do not have to check with anyone before trading Moody's stock. You may buy or sell Moody's stock whenever you wish, as long as you do not possess material non-public information about Moody's. If you have any doubt whether information is material, contact Moody's [Legal department](#).

What are the rules for reallocating Moody's securities in my Moody's profit participation plan?

If you possess material non-public information, you may not change the allocation of Moody's securities in your profit participation plan. However, it is not a violation to make purchases in relation to elections you made previously, when you did not have the information.



Learn more

[Securities Trading Policy](#)



Anti-bribery and anti-corruption

Because trust is integral to who we are at Moody's, we will not engage in any activity that breaches trust, including acts of bribery or corruption.

KNOWING AND FOLLOWING THE LAW

Anyone who acts on Moody's behalf, including Employees and third parties must represent our Company honestly and ethically. That includes never engaging in commercial or public sector bribery. We follow the anti-corruption laws in various jurisdictions, including the U.S. Foreign Corrupt Practices Act ("FCPA") and the UK Bribery Act 2010 ("UK Bribery Act"), which subject Moody's and our Employees to serious penalties for violations. See our [Gifts, Entertainment and Anti-Bribery Policy](#) to learn more.

Moody's may be liable for improper payments made by third parties acting on our behalf, so if you work with third parties who will interact with our customers or prospects, including public officials, be sure those third parties are formally vetted before contracting for any services. See the [Covered Third Party Anti-Corruption Due Diligence and Contracting Procedures](#) to learn more.

We are also required to make sure Moody's [books and records](#) accurately reflect the true nature of our transactions. We must also maintain internal accounting controls to prevent and detect improper transactions. That is why all information relating to our business expenses and other costs must be recorded accurately and completely.

Keep in mind, you may not give gifts, entertainment, or anything else of value to public officials, either directly or indirectly, without first complying with all of these requirements and Moody's Gifts, Entertainment and Anti-Bribery Policy. The Compliance department must approve, in advance, any gifts, entertainment or other things of value offered to public officials. If you have any questions regarding bribery and corruption matters, including questions about local anti-bribery laws, contact the [Compliance department](#).

What do I do if I receive an inappropriate request?

Decline the request firmly and immediately. If a customer, public official or other business contact requests a bribe, kickback or other prohibited payment or gift, tell the person you will not consider the request, and immediately inform your manager and Moody's [Legal department](#).



What kinds of gifts, entertainment or other things of value require compliance approval before giving them to a public official?

- | | |
|--|--|
| → Gifts | → Business opportunities |
| → Promotional items | → Discounted or free products or services |
| → Travel expenses | → Internships, secondment or employment for public officials or their family members |
| → Meals, entertainment, recreation and other hospitality | → Loans |
| → Tickets to sporting, cultural or other events | → Assistance with medical care |
| → Charitable donations – whether in cash or various forms of sponsorship (such as dinners or golf tournaments) | |

What is prohibited?

If you work on Moody's behalf, you may not:

Offer, promise or give money, gifts, entertainment or anything else of value, directly or indirectly, to a business contact, including public officials, with the intent of receiving favorable treatment in exchange

or

“Turn a blind eye” to the likelihood that an agent or other third party is making an improper payment in connection with Moody's business

When is it permissible to give gifts, entertainment or other things of value to business contacts?

It is generally acceptable if:

1. The cost is reasonable and justifiable under the circumstances.
2. You have complied with applicable laws.
3. You have not attempted to obtain or retain an improper business advantage, and it does not reflect negatively on Moody's reputation or the recipient's.
4. The offer is bona fide and relates directly to a legitimate business purpose.
5. You have receipts and proper documentation to support the offer.



Learn more

[Gifts, Entertainment and Anti-Bribery Policy](#)

[Covered Third Party Anti-Corruption Due Diligence and Contracting Procedures](#)

Political activities

When we participate in the political process, either as a Company or as individuals, we must act ethically and with integrity.

PERSONAL AND CORPORATE ACTIVITIES

As individuals. As a Moody's Employee, you are free to participate in the political process on your own time, as long as you do not imply that you are acting on Moody's behalf. Do not permit your Moody's affiliation to be noted in any outside organization's materials or activities without the approval of Moody's [Legal department](#) unless you are serving as a Moody's representative. Individual participation must be completely voluntary and occur only during non-working hours. Do not use Moody's funds, time, equipment, supplies or facilities for your personal political activity.

As a Company. Corporations are not permitted to make political contributions in connection with any election involving a United States federal office. There are similar laws in some states and other countries. Your personal contributions must not be made with, or reimbursed by, Company funds in U.S. federal campaigns or in other U.S. or foreign campaigns where it is illegal.

Discuss any proposed Company political contribution in advance with Moody's [Government, Public and Regulatory Affairs department](#). For more information, see the [Political Activities and Lobbying Policy](#).

LOBBYING

Working to influence legislation or "lobbying" is restricted by laws of the United States, certain states and other countries or jurisdictions. These laws require Moody's to report its lobbying activities, which may include communications you have with any members of U.S. federal, state or local legislative or executive office, or in other jurisdictions, with any members of legislative or executive office or public officials that are meant to influence any action on the Company's behalf.

Before advocating for a public position on government actions on Moody's behalf, contact Moody's Government, Public and Regulatory Affairs department. If you serve on a government advisory board, also be aware of any restrictions on your ability to promote Moody's business during your board work.



Learn more

[Political Activities and Lobbying Policy](#)



International business operations

Moody's is privileged to conduct business around the world. We do so ethically, promoting integrity in international trade and following the law.

ECONOMIC AND TRADE SANCTIONS

Because Moody's operates in a variety of countries, we must comply with all economic sanctions-related laws and regulations and export controls in jurisdictions in which it operates. Economic sanctions rules prohibit or restrict trade with certain individuals, entities, nations and territories, or industries. Never engage in any prohibited dealings, including transacting with or providing services to:

- Any individual or entity (collectively, "person") located, organized or ordinarily resident in a comprehensively sanctioned jurisdiction;
- Any entity owned (50% or more) by a person or persons located in a comprehensively sanctioned jurisdiction;
- Any person who is subject to blocking or asset freeze sanctions, including entities owned (50% or more) by a person or persons subject to these sanctions; or
- Any person where transacting with or providing those services to that person is prohibited under economic sanction rules.

EXPORT COMPLIANCE

If your work involves the export or re-export of goods, including software utilizing encryption technology, be aware that regulatory requirements may apply.

Contact Moody's Legal department at economicsanctions@moody.com if you are:

- Unsure of export controls that apply to goods, technology or software;
- In need of guidance on local export laws; or
- Planning to transfer software using encryption technology to a country outside the United States.

INTERNATIONAL BOYCOTTS

Be aware of U.S. anti-boycott laws aimed primarily at prohibiting cooperation in the boycott against Israel sponsored by the Arab League and certain other countries but can apply in other cases. These laws are set forth in the:

- Export Administration Regulations ("EAR"); and
- Internal Revenue Code ("IRC").

Similar anti-boycott laws may be imposed in other countries where Moody's does business. Contact Moody's Legal department to resolve any conflicts that arise related to anti-boycott laws and immediately inform the [Legal department](#) of any boycott-related requests you receive.

TAXATION

Moody's is committed to fulfilling its tax obligations. The Company's failure to file tax returns promptly and accurately and pay required taxes can result in severe penalties.

IMMIGRATION

All countries strictly regulate the entry of citizens of other countries and the right of persons from other countries to work there. If you are a manager considering hiring a non-citizen, know and follow local requirements, including the need for visas and other documentation.

BUSINESS IN NEW COUNTRIES

If our Company decides to expand our operations into any country where we are not currently qualified to do business, there could be important legal and tax implications.

Consult the Legal department about these and any other legal issues that arise in your work.



International business operations



The most common economic sanctions measures are ...

COMPREHENSIVE SANCTIONS ON JURISDICTIONS

They impose restrictions on a particular geography (or persons located there). Under current U.S. sanctions, that includes Iran, Syria, North Korea, Cuba and the Crimea, Donetsk and Luhansk Regions of Ukraine. This list is subject to change at any time. Please contact the [Legal department](#) for the most up-to-date list.

“LIST-BASED” SANCTIONS

They prohibit transacting with certain persons identified on watchlists, such as:

- The list of Specially Designated Nationals and Blocked Persons (“the SDN List”) maintained by the U.S. Treasury Department’s Office of Foreign Assets Control (“OFAC”)
- The Consolidated Sanctions List maintained by the European Union
- The Consolidated List of Financial Sanctions Targets in the United Kingdom maintained by the Office of Financial Sanctions Implementation (“OFSI”)

“ACTIVITY-RELATED” SANCTIONS

They impose more limited restrictions that prohibit certain activities with specific persons.

If you have questions about economic sanctions, please contact the [Legal department](#). You may also use Moody’s [Integrity Hotline](#) to report possible violations of law or our policies or procedures.

See our [Economic Sanctions and International Trade Compliance Policy](#) to learn more.



Learn more

[Economic Sanctions and International Trade Compliance Policy](#)



Anti-money laundering

As members of the financial industry, Moody's has a responsibility to do its part to help preserve integrity in the financial system.

KEEPING OUT ILLEGALLY GAINED FUNDS

Money laundering is the act of disguising money earned through criminal activity, such as drug trafficking and smuggling by making it appear to come from legitimate sources. At Moody's, we comply with all applicable anti-money laundering ("AML") laws and related Know Your Customer ("KYC") and Enhanced Due Diligence ("EDD") requirements wherever we operate.

Moody's business activities generally do not put us at risk of being a conduit for money laundering. However, in certain jurisdictions, Moody's role in others' financial transactions may subject us to local AML laws or regulations and require establishment of an AML program. For that reason, Moody's has implemented appropriate AML policies and programs in those jurisdictions.

Even when such a program is not required, we should always be alert to any signs of money laundering. If you believe a customer is deriving funds from illegal activity or engaged in concealing the nature, location, source, ownership or control of funds that will be paid to Moody's or in connection with a transaction in which we are involved, report it immediately to Moody's [Legal department](#).

How does money laundering work?

It involves three steps:

1. Illegally gained funds are introduced into a legitimate financial system.
2. The money is moved around to create confusion, sometimes by wiring or transferring it through multiple accounts.
3. Additional transactions are used to integrate it into the financial system until the funds appear to be "clean."



Government investigations and litigations

Moody's is committed to doing what is right, including following laws and cooperating with government investigations.

RESPONDING TO GOVERNMENTAL REQUESTS

Like most organizations, Moody's is sometimes asked to participate in a government investigation. Moody's cooperates as appropriate with such investigations, whether the requests come from the U.S. government, the governments of other countries, and their departments and agencies, or judicial authorities.

Although Moody's cooperates with governmental investigations and responds to valid legal requests, we also have important interests to protect. For example, we must always consider the confidentiality obligations we have to our customers, including whether we need to notify certain customers when requested or ordered to provide information about them. To help Moody's comply with valid requests, fulfill our obligations, and provide accurate information, notify the [Legal department](#) if you are approached by a government investigator about Moody's or any of our customers.

This should in no way deter you from reporting concerns of possible wrongdoing to Moody's [Integrity Hotline](#), the [Legal department](#) or any of the [other resources](#) identified in this Code. Nothing in this Code or in any Moody's agreement limits your right to provide truthful disclosures to governmental or regulatory authorities, which are protected under the whistleblower provisions of applicable laws.

Remember, Moody's prohibits retaliation against any Employee for making a good-faith report of suspected wrongdoing to the Company or the government, or for cooperating with a government investigation. If you believe you have experienced retaliation for making a good-faith report or cooperating with an investigation, report it to the Legal department immediately or contact Moody's Integrity Hotline.

CIVIL LITIGATION

Like all companies, Moody's is sometimes involved in civil litigation, and you may be approached by lawyers for companies or people who have brought (or may bring) suit against the Company or one of our customers. If you are contacted by lawyers or third-party representatives, contact Moody's Legal department for guidance before responding to any questions or providing any information about Moody's or our customers.



When assisting with an investigation, never:

- Destroy, hide or alter any document, in anticipation of a request from a government agency or court
- Lie or make misleading statements to any government investigator, or in any deposition or testimony
- Attempt to encourage anyone else to engage in these acts

FOLLOWING RECORD RETENTION AND PRESERVATION DIRECTIVES

We have a duty to retain documents and other records (in all forms) for the periods of time specified by law and under Moody's record-retention policies, procedures and rules.

When responding to a government investigation or a civil litigation, Moody's may issue a record preservation directive to all relevant Employees who may possess any relevant records. That means the Legal department may occasionally direct you to preserve the records you may have. If you receive such a directive, do not destroy or discard any related records, regardless of where or how those records are stored. If you have not received such a directive but believe you have records related to a subpoena or pending or contemplated litigation or government investigation, immediately contact the Legal department. In those cases, retain all potentially relevant records until the Legal department advises you on how to proceed. Also, if you learn of a subpoena or pending or contemplated litigation or government investigation against Moody's or one of our customers, immediately contact the Legal department.

Also preserve all relevant records subject to a record preservation directive that might otherwise be destroyed or erased (such as voice mail messages). Destroying such records, even inadvertently, could seriously prejudice the Company. Destroying or falsifying a record with the intent of impeding a governmental investigation, audit or examination may lead to prosecution for obstruction of justice. If you are unsure whether a record may be destroyed, consult Moody's Legal department for guidance.

Be aware, these retention rules apply equally to Company records that you store outside of Moody's, including your home. If you do store records outside of Moody's, provide them to the Legal department when requested. If you have any relevant electronic records on your personal computer, smartphone, tablet or other electronic device, Moody's may ask you to provide access to such a device to allow the Legal department or their agent to extract any Moody's records related to an ongoing investigation or litigation.

Are my files, memos and emails confidential?

No. Except for certain "privileged" communications, all Company documents and computer files, including confidential communications and documents, may have to be disclosed to government enforcement organizations or private parties in investigations or lawsuits. Marking documents "restricted" or "confidential" may not protect them from disclosure in court. Ask Moody's Legal department when communications with a lawyer are "privileged" and may be protected from disclosure.



Our resources

When you have questions or need guidance, Moody's has resources to help:

To ask questions or report potential misconduct or other ethical concerns

The People Team

The Compliance department

The Legal department

The Integrity Hotline

Available worldwide, 24 hours a day, seven days a week, 365 days a year in more than 75 languages.



MOODY'S INTEGRITY HOTLINE



Online:
<https://moodys.ethicspoint.com>



By phone: You can access the Integrity Hotline directly in the following locations:

United States: 1.866.330.MDYS
(1.866.330.6397)

Belgium: 0800 14 375

France: 0 800 99 23 64

Hong Kong: 800969419

India: 000 800 919 1504

Singapore: 8001207175

United Kingdom: 0800 102 6525

By telephone from all other jurisdictions: Dial the AT&T Direct Dial Access® code for your location (listed at moodys.ethicspoint.com). Then, at the prompt, dial 1.866.330.MDYS (1.866.330.6397).

If there is no AT&T Direct Dial Access® Code listed for your location, dial your access code for U.S. calls (which you can find by contacting an international operator or by visiting the [AT&T World Traveler website](https://www.att.com/worldtraveler), wait for the tone or prompt, and then call 1.866.330.MDYS (1.866.330.6397).

THE PEOPLE TEAM

Maral Kazanjian
Chief People Officer
7 World Trade Center at 250 Greenwich Street
New York, New York 10007
Telephone: (212) 553-3422
Maral.Kazanjian@moodys.com

Nejiba Chekir
Vice President, HR Regional Partner
77 Esplanade du Général de Gaulle
La Défense
92800 Puteaux France
Telephone: +33 (602) 138-785
Nejiba.Chekir@moodys.com

Maggie Li
Vice President, People Business Partner
One Pacific Place, Floor 24
88 Queensway
Admiralty
Hong Kong
Telephone: (852) 3758-1388
Maggie.Li@moodys.com

THE LEGAL DEPARTMENT

Richard Steele
Senior Vice President & General Counsel
405 Howard Street, Suite 300
San Francisco, CA 94105
Telephone: (415) 874-6113
Richard.Steele@moodys.com

INTERNAL AUDIT

Chelsea Remme
Managing Director, Chief Audit Executive
7 World Trade Center at 250 Greenwich Street
New York, New York 10007
Telephone: (212) 553-0205
Chelsea.Remme@moodys.com

THE COMPLIANCE DEPARTMENT

Andrew Weinberg
Chief Compliance Officer
7 World Trade Center at 250 Greenwich Street
New York, New York 10007
Telephone: (212) 553-3478
Andrew.Weinberg@moodys.com

James Bodovitz
Designated Compliance Officer, MIS Americas/
Global Coordination
7 World Trade Center at 250 Greenwich Street
New York, New York 10007
Telephone: (212) 553-2849
James.Bodovitz@moodys.com

Keith Stoddart
Designated Compliance Officer, MIS Asia Pacific
Moody's Asia-Pacific, Ltd
One Pacific Place, Floor 24
88 Queensway
Admiralty
Hong Kong
Telephone: (852) 3758-1426
Keith.Stoddart@moodys.com

Barbara Sullivan
Designated Compliance Officer, MIS EMEA
One Canada Square
Canary Wharf
London, E14 5FA
United Kingdom
Telephone: (4420) 7772-5357
Barbara.Sullivan@moodys.com

Jennifer San Cartier
Designated Compliance Officer, Moody's
Analytics and Moody's Shared Services
7 World Trade Center at 250 Greenwich Street
New York, New York 10007
Telephone: (212) 553-7927
Jennifer.SanCartier@moodys.com

Our policies

Truth is integral to who we are, and we opt to do what’s right over what’s easy. Each of us has a duty - to ourselves, our colleagues, our stakeholders and everyone we do business with - to uphold and enhance the Company’s long-held reputation for legal and ethical conduct.

The following is a list of policies and other resources referenced in the Code. Note that this is not an exhaustive list of Moody’s policies. Visit our intranet site to learn more.

[Confidential Information and Material Non-Public Information Policy](#)

[Non-Employee Engagement Policy](#)

[Covered Third Party Anti-Corruption Due Diligence and Contracting Procedures](#)

[Outside Interests and Other Potential Conflicts Policy](#)

[Economic Sanctions and International Trade Compliance Policy](#)

[Personal Data Retention Policy](#)

[GenAI resource hub](#)

[Personal Relationships and Nepotism Policy](#)

[Gifts, Entertainment and Anti-Bribery Policy](#)

[Political Activities and Lobbying Policy](#)

[Global Workplace Violence Prevention Policy](#)

[Principles for Responsible AI](#)

[Interactions with Employees of Competitors - Procedure](#)

[PurposeFirst and Remote Working Policy](#)

[IT Use Policy](#)

[Securities Trading Policy](#)

[Moody’s Ratings’ Electronic Communications Policy](#)

[Social Media Policy](#)

[Moody’s Ratings - Moody’s Analytics Separation Policy](#)

[Travel and Entertainment Policy](#)

[Video/Audio Call Recording Policy](#)



MSSA Moody's /Scor

Final Audit Report

2025-06-30

Created:	2025-06-30
By:	Revathi MINIANDEE (RMINIANDEE-EXTERNAL@scor.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAACvez_S9_PYQh_RcSnNZcQ1mjoaTst1pY

"MSSA Moody's /Scor" History

-  Document created by Revathi MINIANDEE (RMINIANDEE-EXTERNAL@scor.com)
2025-06-30 - 4:58:26 PM GMT- IP address: 130.41.135.112
-  Document emailed to Claudia DILL (CDILL@scor.com) for signature
2025-06-30 - 5:01:07 PM GMT
-  Email viewed by Claudia DILL (CDILL@scor.com)
2025-06-30 - 7:37:18 PM GMT- IP address: 81.36.130.128
-  Document e-signed by Claudia DILL (CDILL@scor.com)
Signature Date: 2025-06-30 - 7:37:36 PM GMT - Time Source: server- IP address: 208.127.55.91
-  Document emailed to Daniel Flemington (daniel.flemington@moodys.com) for signature
2025-06-30 - 7:37:43 PM GMT
-  Email viewed by Daniel Flemington (daniel.flemington@moodys.com)
2025-06-30 - 7:37:49 PM GMT- IP address: 54.145.137.9
-  Document e-signed by Daniel Flemington (daniel.flemington@moodys.com)
Signature Date: 2025-06-30 - 7:50:44 PM GMT - Time Source: server- IP address: 208.127.123.187
-  Agreement completed.
2025-06-30 - 7:50:44 PM GMT